

Recalling Violence

Written By:

Andrew Niebel and Martin Beredo

Based on True Events

Andrew Niebel

(419) 442 1811
aniebel424@gmail.com

Martin Beredo

(567) 702 1092
mjberedo@syr.edu

July 23rd, 1948.

Intersection of State Route 687 and U. S. Route 224, six miles east of Van Wert, a little after 11 AM. It's a hot, muggy summers' day in Ohio, and the shimmering intersection is surrounded by open fields and blue skies.

A cement roadblock cuts the intersection in half, and police cars sit on either side.

Leonard Conn, a young officer, leans on his car on the right side of the road. Middle-aged Sheriff Shaffer stands closer to the gate in the middle, and two more policemen sit in their car to the left. Conn sees a truck coming in the distance.

A car-hauler carrying four Studebakers rolls into the intersection and stops in front of the roadblock.

The sheriff approaches the driver's side door and finds a younger looking man with broken circular glasses, parted black hair, and a receding chin. He wears a sweaty, long-sleeved button-down shirt with suit pants.

SHERIFF SHAFFER:
How ya doin today, son?

DRIVER:
I'm okay.

SHERIFF SHAFFER:
Can I see some form of identification?

The driver pulls out his wallet and hands the sheriff an ID.

SHERIFF SHAFFER: (CONT'D)
Orville Taylor... Where you coming from today, Orville?

DRIVER:
Tiffin.

Shaffer studies the ID, then looks at the young man. He takes a step back to look at the rest of the trailer. Two cars sit on each level of the trailer.

SHERIFF SHAFFER:
If it's not too much trouble Orville,
I'd like to search your cargo here.

The driver adjusts himself in his seat.

DRIVER:
Is that really necessary?

SHERIFF SHAFFER:
Well, in case you didn't hear, there's
a couple of killers runnin about. I'm
required by law to search any vehicle
that passes through that there gate.

The driver pauses for moment, then sighs.

DRIVER:
Alright then sheriff, go ahead.

SHERIFF SHAFFER:
I appreciate that Orville, thank you.

The driver takes a cigarette out of his breast pocket.

DRIVER:
Mind if I smoke?

SHERIFF SHAFFER:
(flatly)
Sure.

Shaffer turns back toward the roadblock, motioning for
another officer to join him.

SHERIFF SHAFFER: (CONT'D)
Leonard, come cover me, I'm gonna
search these cars.

The driver lights the cigarette and takes a pull.

SERGEANT LEONARD CONN:
Yessir.

Leonard grabs a sub-machine gun from his car and eyes down
the Driver.

SHERIFF SHAFFER:
(to Driver)
You sit tight now.

The driver sets the wallet back down under his seat next to a
large .30 caliber rifle.

Shaffer walks to the back of the hauler, lifting the tarp on

the first car. He finds nothing.

Another man is seen through just a small slit in the tarp of one of the cars, though we can't tell which one. He sports a black eye and a scared expression.

Shaffer rips the tarp open on the second car, but it's empty.

The driver wraps his hand around the rifle's barrel and sees Shaffer in his mirror.

SHERIFF SHAFFER:
(yelling to Conn)
I'm gonna go ahead and check up top!

SERGEANT LEONARD CONN:
Copy!

We rise up to the catwalk as Shaffer pulls himself up onto the back end of the truck.

The driver eyes down Conn and the two other policemen.

The man under the tarp holds two pistols in each hand with a rifle laid out across his lap.

Shaffer tiptoes to the first car on the top deck, ripping the tarp off, and again finding nothing.

The wind whips the final car's tarp as the Sheriff moves closer. A fly buzzes into the car, and the man doesn't react.

Down below, drops of sweat bead on the driver's head as he finishes his cigarette. He pushes his broken glasses towards his eyes and slips a piece of paper into his chest pocket.

Up top, the hidden man hears footsteps clanking closer and closer to his car. His breathing slows, and he closes his eyes.

Down below, the driver hears the tarp come off of the top car.

SHERIFF SHAFFER: (O.S.)
Ha! Here's one!

ROBERT DANIELS: (O.S.)
You got me! Don't kill me! I'll do
anything you say!

As he hears the exchange, the driver's face hardens - this

time Daniels has left him no choice.

He pulls the rifle from out under him and pushes the door open, firing at Conn and dropping him instantly. Conn falls back and drops the sub-machine gun, yelling in pain.

Shaffer hears this and sees Conn go down. He takes cover, but still tries to keep a gun on Daniels. Daniels has dropped his guns and has his hands in the air.

The driver fires into the roadblock, hitting one of the policemen in the arm.

Shaffer tries to reach over the truck and shoot the driver from above but doesn't have an angle on him. The two policemen take cover. The driver continues firing, slowly walking toward the roadblock, not paying any attention to Conn.

Conn, still alive, manages to grab the sub-machine gun. He torques his body, spraying an arc of bullets that shatter the truck's windshield. One of the bullets hits the driver squarely between the eyes, and his body goes limp. He falls backwards.

Shaffer takes cover on top of the truck.

SHERIFF SHAFFER:
(over police radio)
Officer down, requesting immediate
backup. SR224. Again, requesting
immediate backup, officer is down...

A pool of blood trickles from the driver's lifeless head, and his glasses sit on the road next to him. Both lenses have now shattered.

Daniels, the hidden man, looks out at the horizon and sighs.

MATCH CUT TO:

EXT. DAY: POLICE CAR - DOWNTOWN MANSFIELD, OHIO

2

Daniels sits in the back of a police car in a checked suit. He looks out at the rest of the security cars in his parade, then at the swarm of onlookers.

The sidewalks are filled with them: many swear at his car, some gesture violently, others just try to peek in. Daniels cracks a wry smile, head pressed to the window.

CUT TO:

EXT. DAY: OHIO STATE REFORMATORY COURTYARD

3

Daniels' car rolls to a stop outside the reformatory; he's let out to see rows of policemen holding back a mob of fiery onlookers, clearing a path up the road to the doors.

Several policemen move a handcuffed Daniels up the stairs, who smiles arrogantly at the people surrounding him.

ROBERT DANIELS:

(to crowd)

Give me credit. Give me credit for all the Niebels!

CROWD:

Kill him! Lynch him!

ROBERT DANIELS:

Fuck you all! Go back home!

CROWD:

Give him the fuckin chair!

CROWD:

Kill the rat right now!

Daniels enters the front lobby cackling with laughter. As the doors close behind him the mob overwhelms the police outside.

INT. DAY: FRONT LOBBY OF OHIO STATE REFORMATORY

4

Commotion echoes even louder when Daniels enters the building; dozens of policemen, reporters and attorneys are packed into the tiled lobby.

REPORTER:

Picture! Picture for the press!

ROBERT DANIELS:

(to crowd)

Wait till I get my collar straight.
How 'bout I pose with a gun in my hand.

Daniels leans back and cartoonishly points a handgun at the sky. The camera snaps and a bright flash goes off.

Two policemen forcefully move Daniels to a hallway at the end of the room. Shaffer faces the newsmen.

REPORTER:
 (to Shaffer)
 Sherrif, how'd you take down the
 killer John West?

SHERIFF SHAFFER:
 Well, he handed me the ID of Orville
 Taylor, but we had gotten the report
 of Taylor's death that morning, so I
 knew right then and there that they
 were the killers. I called in -

The front door bursts open and the mob floods in, shouting
 obscenities at Daniels. The guards and policemen react
 quickly, shoving the invaders with batons, and Shaffer turns
 away from the press.

SHERIFF SHAFFER: (CONT'D)
 Everyone get back! Go on, get back!

The policemen shove Daniels deeper into the hallway.

INT. MORNING: THE OHIO STATE REFORMATORY

5

Guards take him back to a desk and book him.

They give Daniels a prison uniform and lead him into the
 women's section of the jail, much to Daniels' chagrin. His
 cell is in the back corner, totally isolated.

INT. MORNING: OUTSIDE OF DANIELS'S CELL

6

Shaffer closes his cell door and locks it.

ROBERT DANIELS:
 Well, so long buddy, I'll be seeing
 you.

He looks at Daniels for a moment before reaching out his
 hand. Daniels doesn't return the look: something's caught his
 eye.

In the other end of the hall, a well-dressed man in glasses,
 Theodore Lutz, is seemingly interrogating a guard, Willis
 Harris. Lutz's mannerisms are exact and aggressive; Harris
 seems pensive, shifting his weight and sweating.

Harris spots Daniels observing their conversation, then
 shakes his head and walks out.

SHERIFF SHAFFER:
 (to Lutz)
 Alright prosecutor, that's enough for
 today.

Lutz nods.

SHERIFF SHAFFER: (CONT'D)
 (to other policemen)
 Do you want a picture of the two of us
 saying goodbye?

ROBERT DANIELS:
 Awe. I'd appreciate that.

POLICEMAN #3:
 Right here, sheriff.

The two line up for the photo, Lutz remains in the doorway
 taking notes.

There's a camera flash, and we...

CUT TO:

INT. NIGHT: DANIELS'S CELL

7

Daniels sits hunched over on his bed, lit only by the dim
 hallway ceiling light. He rocks lightly back and forth.

Daniels hears a door slam open and an array of footsteps
 marching toward his cell. It's an entourage of guards and
 police officers.

The guards rip open his cell door and drag him out.

ROBERT DANIELS:
 The hell?

They don't respond, handcuffing him and pulling him all the
 way down the end of the hall.

Daniels is moved through the rest of the prison and out
 through a side door, where again two cars are waiting.

EXT. NIGHT: BEHIND OHIO STATE REFORMATORY

8

Daniels is shoved into the back of a black civilian sedan
 along with two guards. Theodore Lutz is already sitting in
 the front passenger seat.

ROBERT DANIELS:
Ain't you the prosecutor?

Lutz glances at him through the rearview mirror.

THEODORE LUTZ:
(to the driver)
Let's go.

ROBERT DANIELS:
Wait a minute, you can't just do this.
I have my rights.

The car takes off.

THEODORE LUTZ:
(to Daniels)
We're going to the Niebel property,
and I want your head to be in the
right place when we get there.

Daniels looks at Lutz then back out the window, defeated.

ROBERT DANIELS:
What don't y'all have on me already?

Lutz reaches forward and turns on the radio, (INSERT SONG
HERE) starts playing. The car drives off into the rainy
night.

EXT. NIGHT: NIEBEL PROPERTY

9

The two cars roll into a long driveway leading to a large
white-frame country house. It's pouring rain.

The porch staircase is rickety and wet; the first policeman
slips on a loose stair. Daniels strides past them. He's been
here before.

INT. NIGHT: NIEBEL HOUSE

10

Lutz leads the pack into the house, unlocking the door and
walking in quietly. The sounds of heavy rain obscure the
squeaking of their shoes. He flicks a light on, revealing a
once-modest home that's now covered in crime scene forensics.

There's an eerie feel to the whole house: the walls are bare
and the furniture has been stripped down. Daniels walks into
the kitchen.

Lutz sits at the kitchen table and Daniels sits down across

from him.

THEODORE LUTZ:

Robert, I want you to walk me through exactly what happened here on July 21st.

Daniels doesn't talk, instead looking at the police officers standing behind Lutz.

THEODORE LUTZ: (CONT'D)

Alright then. Who went upstairs?

Daniels looks back down at him, listening.

THEODORE LUTZ: (CONT'D)

It was you, wasn't it? What'd you do up there?

ROBERT DANIELS:

I don't know what you're talking about.

Lutz reaches into an evidence bag.

THEODORE LUTZ:

We found cigarette stubs in the carpet of the first and second floor. None of the Niebels smoked, but Willis Harris told me that you do.

Daniels is silent again, looking down.

THEODORE LUTZ: (CONT'D)

You take any money? How much did you take?

(beat)

Stupid question, right? All of their jewelry is still upstairs. You two didn't care about the money, that's not what you came for.

So who's idea was it to come here, Robert?

ROBERT DANIELS:

It was all Johnny's fault, he -

THEODORE LUTZ:

(interrupting)

Don't give me that bullshit. I read

his file; he had an IQ of 60. He was a goddamn moron, he didn't think of anything.

(pulling out papers)

Listen Bob, people are scared. They don't go out anymore. They won't let their kids play past sunset. It's gotta change; people deserve justice.

Daniels looks at him blankly.

THEODORE LUTZ: (CONT'D)

So here's what I'm gonna do:

(slides paper)

That's a plea deal, son. All you need to do is sign those papers, and I can get you a reduced sentence.

Daniels takes the papers.

ROBERT DANIELS:

Reduced to what?

THEODORE LUTZ:

Life without the possibility of parole.

Daniels looks up from the papers, offended.

THEODORE LUTZ: (CONT'D)

Would you rather get the chair?

ROBERT DANIELS:

What am I even agreeing to do here?

Lutz taps the pages. Daniels keeps reading.

ROBERT DANIELS: (CONT'D)

Six counts of first-degree murder?
Whatever happened to three?

THEODORE LUTZ:

Considering Mr. West is no longer with us, it's just easier to charge you for all the murders. Nobody wants to see a dead man crucified.

We've already spoken to the families, and they want this over and done with. People want things to go back to the way they were.

ROBERT DANIELS:
Before I came along?

THEODORE LUTZ:
Yes. They want to feel safe in their
homes again.

Beat.

ROBERT DANIELS:
But, I had three and Johnny had three.

THEODORE LUTZ:
In your mind Bob, sure. But in the
eyes of the court, the eyes of the
people, *they'll see whatever you show*
them. It's all on you now.

Daniels thinks it over. Eventually, he grabs the papers and
signs the bottom of each one.

Lutz takes the papers and reads.

THEODORE LUTZ: (CONT'D)
Goddamnit.

Daniels laughs. The other cops peer at the four pages: the
first one says "SUCK", second says "ON", third "THIS", and
the fourth has a large drawing of a penis.

THEODORE LUTZ: (CONT'D)
Get him out of here.

Two guards pull a beaming Daniels from the table and take him
out front. Only Lutz and three officers remain.

THEODORE LUTZ: (CONT'D)
Go get the tapes.

The officers open up a nearby closet, revealing a recording
device which is still rolling. Lutz walks out of the room.

POLICEMAN #4:
What should we do with the tapes?

THEODORE LUTZ:
Burn em. They're worthless now.

The policemen watch as Lutz walks out into the rain.

CUT TO:

INT. MORNING: COURTROOM

11

September 13, 1948 - 2 Weeks Later

Theodore Lutz stands at the prosecutor's table, arranging papers. He looks to the defendant's table at Daniels, who wears a pressed glen-plaid suit and chews gum. He sits next to his attorney, L.H. Beam.

It's visibly hot, and it only gets hotter as dozens of spectators pile in. They flood the corridor outside the courtroom, clamoring to see the trial. Most of the crowd are women; they fan beads of sweat off of their heavy makeup.

Daniels notices that there are three chairs behind the judges' bench.

ROBERT DANIELS:

Why do they got three chairs up there?
Ain't there only one judge?

L. H. BEAM:

To be honest Robert, I've got no clue. There's almost no precedent for a three-judge trial, especially without a jury. I'd say Lutz pulled some strings. This seems like something for the papers; a conviction from three judges feels more powerful than just one. They're trying to make an example out of you: show people that you can't make this much noise and expect a fair trial.

Lutz goes over notes with an assistant at his table.

L. H. BEAM: (CONT'D)

Plus, it'd make Lutz look a hell of a lot better if he wins.

Three judges open the doors to the courtroom and take their seats.

BAILIFF:

All rise for the honorable Judge
Chester Pendleton, Judge H.E.
Culbertson, and presiding judge, Judge
G.E. Kalbfleisch.

The crowd's chatter stops and they all rise. The judges get to the head of the courtroom and sit down to face the

gallery.

JUDGE PENDLETON:

(to the room)

You may be seated.

Everyone sits.

JUDGE G. E. KALBFLEISCH:

The prosecution may proceed with the opening statement.

Lutz stands up, buttons his suit, and walks in front of the judges. He speaks in a confident but calm cadence.

THEODORE LUTZ:

Thank you, your honor. Today, the citizens of the state of Ohio charge one Robert Daniels with the unlawful, purposeful, deliberate, premeditated and malicious killing of John, Phyllis, and Nolana Niebel. He violated the peace and dignity of the state of Ohio, and the prosecution has filed motions in favor of the highest possible ruling: death by electrocution.

Lutz returns to his seat. The judges take notes, the courtroom reporter types furiously, but the loudest noise is Daniels chewing his gum.

JUDGE G. E. KALBFLEISCH:

The defense may now proceed with their opening statement.

L. H. BEAM:

On behalf of Robert Daniels and myself, I'd like to thank the judges and the court attendants for taking part in this trial. As the defense has been collecting evidence, many pieces of truth have come to light. I expect the evidence to show that John West was the dominate force in these crimes, and Mr. Daniels a willing subject to his influence. In their time at the reformatory, Robert Daniels and John West developed a close relationship. They were both abused by one Willis "Red" Harris, a

reformatory guard. The two were out to get Mr. Harris, and in their journey my client developed a demented mental state at the hands of John West.

(beat)

My client, Robert Daniels, pleads not guilty by reason of insanity.

The court gallery are shocked, and the women loudly murmur behind their fans. Lutz leans over to talk with his team, the judges discuss among themselves, reporters scribble in their notebooks, but Daniels keeps chewing his gum.

Judge Pendleton slams his gavel.

JUDGE PENDLETON:

Order! Order!

Everyone quiets down. The judges continue deliberating, and eventually come to a conclusion.

JUDGE G. E. KALBFLEISCH:

Your motion has been granted. The prosecution may now present evidence and call witnesses to the stand.

Lutz whispers something to another lawyer, then stands to face the judges.

THEODORE LUTZ:

The prosecution would like to call Reverend Herbert Veler to the stand.

A middle-aged priest dressed in a cassock stands up from the crowd. Sweat drips off his Roman collar.

Rev. Veler sits down, and Lutz walks over to him.

THEODORE LUTZ:

Thank you for coming Reverend.

REVEREND VELER:

Of course.

THEODORE LUTZ:

Reverend, can you walk me through what you did in the afternoon of July 21st?

REVEREND VELER:

The boys and I went on a hike along Fleming Falls Road around 2pm.

Veler looks at Daniels nervously.

REVEREND VELER: (CONT'D)
We went on our usual hike, led by my
clergy boy, Bob Zoeller.

CUT TO:

EXT. AFTERNOON: HIKING TRAIL 2PM

12

A dirt path cuts through the field of head-high corn. A blazing sun beats down on the path, and the campers' boots crunch the hard ground. Robert Zoeller, an 18-year-old, leads a group of 65 kids through the trail. They're all dressed in camping gear: a proper Boy Scout group.

None of them can see above the corn except Zoeller and Veler. Veler walks in the back of the group, taking in the sun and soil.

CHURCH KID #1:
Do we have anything else planned today
reverend?

REVEREND VELER:
"Do not be anxious about anything, but
in everything by prayer and
supplication with thanksgiving let
your requests be made known to God."
Philippians 4:6.

The boy looks at his friend in confusion of what the Reverend just cited.

ROBERT ZOELLER:
Let's just enjoy the hike boys.
Everything around us was made by God
for us. We should be grateful.

The group groans collectively as they march on.

Zoeller notices a patch of downed corn in the field swarming with flies. He's the only one that can see it, but it's hot, and his vision is blurred.

ROBERT ZOELLER:
Keep on marching boys, I'll be right
back.

Zoeller cautiously makes his way into the corn, not knowing what to expect.

He emerges into the downed patch and sees three naked dead bodies: a man and two women. Horrified, he rushes back through the corn to the rest of the group.

He returns, speechless and panting. Veler approaches him first.

REVEREND VELER:
Everything alright, Bob?

ROBERT ZOELLER:
Yup.
(to boys)
Everything's fine. The farmers just need to, um, call the fertilizer truck to pick up three dead hogs.

Veler stays with him, concerned.

ROBERT ZOELLER:
How would you boys like some s'mores back at camp?

The boys celebrate and begin to hurry back the other direction. Veler looks at the spot in the corn, not sure what to make of it.

CUT TO:

INT. MORNING: COURTROOM

13

REVEREND VELER:
Then we took the boys back to camp, and Bob told me about what he saw. I sent him to the Gardner farm home that was just nearby, and he called up the sheriff.

THEODORE LUTZ:
That must've been quite a tough experience.

REVEREND VELER:
The hardest part was telling the boys, really. They knew something was wrong. They're just innocent kids. How can any kid hear something like that and still feel God's grace? How could anyone?

THEODORE LUTZ:

It's a damn shame Reverend, I'm sorry.

Lutz turns back to face the judges.

THEODORE LUTZ:

The prosecution like to call Dr. D.C. Lavender, Richland County coroner, to the stand.

Lavender, an elderly man, walks to the stand.

THEODORE LUTZ: (CONT'D)

Thank you for being here, Doctor.

D.C. LAVENDER:

Yeah, sure.

THEODORE LUTZ:

Do the findings of the coroner's office corroborate with Reverend Veler's testimony?

D.C. LAVENDER:

Yes, I'd say so.

THEODORE LUTZ:

The prosecution would like to present the state's Exhibit A.

One of Lutz's assistants wheels a projector into the middle of the courtroom. He flicks it on, and it displays a graphic picture of the three Niebels: nude, veiny, and ostensibly dead.

The gallery gasps at the sight. Daniels leans in to look at the photo.

THEODORE LUTZ: (CONT'D)

These were the bodies as you found them, correct?

D.C. LAVENDER:

Yes. I believe I took that exact photograph.

THEODORE LUTZ:

Were there any signs of struggle?

D.C. LAVENDER:

Hardly. There were indications that

John Niebel was hit with a blunt object on the top of his head, but this wasn't sufficient enough to cause his death.

THEODORE LUTZ:

Can you describe the way that each of the Niebels were murdered?

D.C. LAVENDER:

We can see the bullet wounds at the back of all of their heads.

(pointing)

The bullet came through the top of John Niebel's head and exited through the nasal passage. Young Phyllis was shot on the left side of her head, and the bullet lodged under her right eye. In Nolana, the bullet went through the back of her head and lodged in her facial bones. There is evidence that Nolana could have been still alive after the shot, but was simply left to bleed out for a long, painful death.

The crowd is aghast at the image and information, and a young boy even faints. Court attendants rush to the boy, but Lutz continues unfazed.

THEODORE LUTZ:

Were you able to identify the caliber of bullet used?

D.C. LAVENDER:

Yes. Each of the Niebels were murdered by .25 caliber rounds.

THEODORE LUTZ:

The prosecution would like to present Exhibit B.

Lutz pulls a pistol out of an envelope.

THEODORE LUTZ: (CONT'D)

This is the German Mauser automatic pistol, found at the scene of Jim Smith's murder. Doctor, do the bullets used to murder the Niebels match with this pistol?

D.C. LAVENDER:

Yes. A German Mauser automatic only takes .25 caliber rounds.

THEODORE LUTZ:

So, by your testimony, the Niebels were murdered without struggle, all neatly in a row and all shot in the back of the head?

D.C. LAVENDER:

That is correct, yes.

THEODORE LUTZ:

Would you say that the act of these crimes was premeditated?

D.C. LAVENDER:

Yes.

THEODORE LUTZ:

Would you say, in your professional opinion, that these crimes were carried out with malicious intent?

D.C. LAVENDER:

Absolutely, yes.

THEODORE LUTZ:

Thank you doctor. No further questions.

Lavender steps off the stand and goes back to his seat.

JUDGE PENDLETON:

The defense may now present evidence and call witnesses to the stand.

Beam gets up.

L. H. BEAM:

Thank you, your honor. I'd like to call the defense's Exhibit C into the court.

Beam takes a laminated slip of paper from his table and shows it to the judges.

L. H. BEAM: (CONT'D)

Your honor, I think this medical evidence will show that my client was

laboring under such an unbalanced mental condition that he did not understand the nature of his acts, and also could not understand right from wrong.

(beat)

I also expect the circumstantial evidence to prove that John West was the dominating character, and Daniels was but a willing subject to his influence.

JUDGE H. E. CULBERTSON:

(taking notes)

Thank you, Mr. Beam. This court will take a brief fifteen-minute recess, after which we will hear more arguments from the defense.

He slams his gavel and the crowd stands up, everyone desperate to leave the hot court room. The boy that fainted sits upright and sips a glass of water.

Reporters on the side of the room compare notes, and Daniels watches them closely.

CUT TO:

INT. LATE MORNING: COURTROOM

14

Everyone's back in their seats; court proceedings have resumed. Beam questions a woman on the stand.

L. H. BEAM:

Mrs. Daniels. Can you tell me how young Robert acted after the incident?

MRS. DANIELS:

Which one?

L. H. BEAM:

The incident in 1937. When, according to a police report...

(reads off of report)

A thirteen-year-old Robert Daniels was riding his bicycle then a truck struck him and threw him under the wheels.

MRS. DANIELS:

He just got so nervous. Sometimes, he would go off on crazy spells, but

other times he would just sit at home and stare.

L. H. BEAM:
Did he have any trouble with the authorities?

MRS. DANIELS:
He had quite a lot of trouble after that accident. He was always skipping school, and then a policeman would show up at our door with Robert. He was stealing from the store and running off with girls. We just didn't know what to do with him.

L. H. BEAM:
And when was the last time you saw your son before today?

Mrs. Daniels glances over at her son. Daniels is stone-faced.

MRS. DANIELS:
I think it was June 20th. His eyes were all glassy-lookin and he was staring at the horizon. He told me...
(choking up)
He told me he was going away.
(sobbing now)
I begged him to stay. He just said, "Mom, what do you want to act like that for?" And he walked right out. That was the last I seen him.

Mrs. Daniels cries into a handkerchief, shielding her face. Daniels doesn't even look at his mother as she's escorted off the stand.

CUT TO:

L. H. BEAM:
Mr. Daniels, was Robert the same after these incidents?

MR. DANIELS:
No. We tried bringing him back to school, but he just wasn't learnin'. The superintendent told us to send him to trade school, so off he went.

L. H. BEAM:
How'd he do at trade school?

MR. DANIELS:
He didn't do jack.
(chuckles)
He just started runnin with the wrong
group of boys.

L. H. BEAM:
Right. Did this school eventually set
him in the right track?

MR. DANIELS:
He was always in and out of jail. But
we got him a job at the Curtis-Wright
Plant... we thought he was doing
better.

Daniels sits behind the desk like a child watching his
parents talk to the school principal.

L. H. BEAM:
How was his health during this time?

MR. DANIELS:
He always complained about headaches,
and he couldn't remember things,
simple things. Like he'd get lost
after work, and the neighbors would
bring him home. He tried to enlist
three times, but they didn't think he
was 'mentally fit' to join. Then he
got into some trouble, and they sent
him to the reformatory.

L. H. BEAM:
And that's where he met John West,
isn't it?

MR. DANIELS:
Yup, they were friends on the inside.
One time, West drove all the way to
our home just to see him.

CUT TO:

EXT. DAY: OUTSIDE THE DANIELS' RESIDENCE

15

A suburban home overcomes its lack of sufficient painting
with a real cozy charm. It's spring, and the sole tree in the

front lawn is blossoming.

Mr. Daniels works in the front yard. He looks up from the ground and sees a car parked across the street. He studies the unfamiliar car, and John West steps out.

West wears a sport coat much too hot for the day and is sweating almost as much as Mr. Daniels. He walks over to the Daniels' mailbox and slips a grey note into it.

MR. DANIELS:

Hey! What are you doing?

West walks awkwardly up to the Daniels' yard under the gaze of Mr. Daniels.

MR. DANIELS: (CONT'D)

Can I help you?

West swipes condensation off of his glasses and looks at the house as if he's trying to see through the windows.

JOHN WEST:

Is this 307 Comstock Ave?

MR. DANIELS:

Yeah. Who's asking?

JOHN WEST:

Does Robert Daniels live here?

Beat.

MR. DANIELS:

Oh, you must be John West.

JOHN WEST:

Ye - yes.

MR. DANIELS:

Bobby isn't around here anymore. And given that you're a felon, I'm gonna have to ask you to get off my property.

JOHN WEST:

Well, where is he?

MR. DANIELS:

That doesn't concern you anymore Mr. West.

JOHN WEST:
Can you at least tell me how I can
find him?

MR. DANIELS:
I'm not gonna tell you again, son. Get
the hell outta here.

Mr. Daniels shoves West down the driveway.

JOHN WEST:
Hey! Watch it!

MR. DANIELS:
Go on, get on now.

Mr. Daniels gives him one last shove in the back, but West spins back around, reaches into his sport coat and pulls out a pistol.

Mr. Daniels immediately backs up.

MR. DANIELS: (CONT'D)
Whoa, easy.

West is somehow the more uneasy of the two. He glances at the house, then back at Mr. Daniels. His body is tense and his breathing is heavy.

West quickly puts the gun back into his coat and walks to his car. He fumbles with his keys, nearly dropping them before unlocking his car.

Mr. Daniels watches, frozen, as West speeds off.

CUT TO:

INT. MORNING: COURTROOM

16

L. H. BEAM:
And Robert was home at the time?

MR. DANIELS:
Yes, he was. He wasn't too happy I
sent his friend away though.

CUT TO:

INT. DAY: THE DANIELS' RESIDENCE

17

Mr. Daniels walks back into the house.

MR. DANIELS: (V.O)
He'd heard my shouting and the car
spinning off.

Robert Daniels greets his father at the door.

ROBERT DANIELS:
That was Johnny, wasn't it?

Mr. Daniels brushes past him into the house.

ROBERT DANIELS: (CONT'D)
Pop. Pop! Why didn't you just let him
in?

MR. DANIELS:
He isn't good for you. You need to
move on from all that prison shit and
make a man outta yourself.

ROBERT DANIELS:
Aye! Johnny is a smart son of a bitch.
He's the smartest guy I ever saw. I'm
tired of you and Ma always giving me
shit about not having a job and just
lying around the house. So, now I'm
gonna do something about it.

MR. DANIELS:
With him?

ROBERT DANIELS:
Johnny and I got it all figured out.
We're gettin some money and we're
leaving. For good.

Robert leaves the room, and we hear his father shout at him
from the hallway.

MR. DANIELS: (O.S.)
You can go ahead and leave, Robert.
But when you come knocking at that
door in about a month, just know it
ain't opening.

Robert Daniels lets those words resonate, and we...

MATCHCUT TO:

INT. MIDDAY: COURTROOM

18

Daniels watches as Lutz counter-examines his father.

THEODORE LUTZ:

Mr. Daniels, where were you when your son was ran over by that truck?

MR. DANIELS:

What?

THEODORE LUTZ:

It was a Saturday, correct? Were you working?

MR. DANIELS:

No, I was at the house.

THEODORE LUTZ:

Doing what, exactly?

MR. DANIELS:

I don't know, this was years ago.

JUDGE H. E. CULBERTSON:

Mr. Lutz...

THEODORE LUTZ:

Mr. Daniels, do you drink?

MR. DANIELS:

Pardon?

THEODORE LUTZ:

Did you ever lay hands on young Robert?

MR. DANIELS:

What the hell are you gettin' at?

THEODORE LUTZ:

Do you think Robert's crimes were a direct result of his poor home life?

MR. DANIELS:

What's your evidence? That boy was raised right!

JUDGE PENDLETON:

Please keep this court orderly Mr. Daniels.

THEODORE LUTZ:

No, no. He's right. I don't have any evidence. Seems like you raised this young man in a happy, healthy home, and taught him the difference between right and wrong.

ROBERT DANIELS:

Hey!

Beam, frustrated, shuffles through papers; Daniels looks at him without an ounce of faith. The judges talk quietly for a moment.

THEODORE LUTZ:

No further questions, your honor.

JUDGE G. E. KALBFLEISCH:

Alright, this court is adjourned.
We'll pick back up tomorrow at 9 A.M.

Kalbfleisch slams his gavel, and everyone loudly stands up and starts chatting. Two guards go over to the defense table and escort him out. Mr. and Mrs. Daniels start to walk out of the courtroom.

A man in the gallery shouts at Daniels.

CROWD MEMBER #1:

You think your momma still gonna cry
after she find out what you did to
that girl?!

Daniels turns to see who it was; the crowd gets louder.

ROBERT DANIELS:

That's a lie! That's a dirty lie!

The police drag him out of the scene, and Daniels can only watch as a sea of angry people engulf his mother and father. The crowd have been riled up, and security works to maintain order.

Two guards rush Daniels into a hallway behind the court, where we find Lutz lighting a cigarette.

Daniels looks at Lutz, expecting him to say something, but Lutz just blows a puff of smoke in Daniels' face.

The guards continue to usher Daniels away, and we...

CUT TO:

INT. NIGHT: DANIELS' CELL

19

Daniels sits on his cot and eats grey slop out of a rusty metal tray. His corner cell is dark, and the only light comes from the ceiling light in the hallway.

Daniels hears a sound from the next cell over: Two rats fight on the cement floor. They tumble and squeal in pain, eventually rolling into the light of the hallway.

Daniels doesn't move, but his eyes pay close attention to the battle.

One rat gets on top of the other, scratching its belly and biting its throat. The bottom rat, helpless, squeals in agony. Daniels is stone-faced.

Eventually, the bottom rat dies.

Daniels watches as the top rat eats the bottom one, tearing apart his flesh. He notices a third rat a few feet away, watching the whole ordeal.

Daniels slowly picks up his spoon to continue eating, finally having someone to share a meal.

CUT TO:

INT. MORNING: DANIELS' CELL

20

September 15th, 1948. TWO WEEKS LATER.

Daniels wakes to a guard banging on the cell bars. The guard throws his court clothes to him (suit, leather shoes, and large tie).

Daniels rolls out of bed, rubs his eyes, and slicks his hair back. His black eye has now fully healed. He puts the clothes on carefully.

CUT TO:

EXT. MORNING: OUTSIDE COURTROOM

21

Daniels sits in the backseat of a black Studebaker that rolls to a stop in front of a courthouse.

Two policemen usher him out of the car and walk him up the steps. A hoard of newspaper reporters surrounds Lutz.

REPORTER #1:

Mr. Lutz, is it true that you and several officers took Robert Daniels out to the Niebel property for questioning?

THEODORE LUTZ:

I will neither confirm nor deny that we visited the scenes.

Shaffer talks to a reporter outside the commotion.

SHERIFF SHAFFER:

I sure do hope they call me to the stand today, I didn't wear this nice suit for nothin'.

As Daniels makes his way up the stairs, reporters swarm him.

REPORTER #2:

Any comment about the outburst in court yesterday?

REPORTER #3:

Mr. Daniels! Will you take the stand today?

REPORTER #4:

Are you aware that the families of your victims will be attending today's proceedings?

Daniels pauses and looks at Lutz, but the policemen push him forward up the steps, and we...

CUT TO:

INT. MORNING: COURTROOM

22

Two guards open the doors and Daniels walks through the middle of the gallery, which looks to be at full capacity. He looks at each person, methodically walking to get a view on all of them.

We see quick shots of people in the crowd as he looks at them: news reporters take notes, typists look up at him then back down at their keyboards, men gaze with hatred, women watch with bated breath.

Daniels finds the daughter of Earl Ambrose, and we pause on her. He stares her brazenly, knowingly.

He sees Rita Smith, who stares down Daniels as a friend rubs her back.

At the head of the room, he sees the Niebel family. Daniels walks by them and gives the kids a wink.

He gets to the defendant's table and sits down next to Beam.

L. H. BEAM:
You sleep alright?

ROBERT DANIELS:
(ignoring him)
You know where those reporters are from?

L. H. BEAM:
(pointing)
They're from Chicago, they're from Cleveland, and the ones in the back are from Detroit.

ROBERT DANIELS:
Did you know about those two girls and the Niebels coming?

L. H. BEAM:
Yeah... I'm pretty sure that was Lutz's idea.

Lutz mulls over papers with his assistant across the room.

ROBERT DANIELS:
(glancing at the Lutz)
He wants a confession today.

L. H. BEAM:
You know... I can't technically stop you from taking the stand today, but as your attorney I have to say: you shouldn't go up there. Lutz will pick you apart.

ROBERT DANIELS:
(annoyed)
What? You don't think I can do this?

L. H. BEAM:
No, no, I -
(sighs)
Look, all you need to do is blame West

for the killings. Your memory isn't great, remember that. You don't have to answer every question. Got it?

Daniels pauses, staring with unfocused eyes at Lutz.

L. H. BEAM: (CONT'D)
You got it, Robert?

ROBERT DANIELS:
I got it.

L. H. BEAM:
You sure?

Daniels gets a pack of cigarettes from his coat pocket.

ROBERT DANIELS:
Yeah, I got it.

Daniels lights the cigarette and takes a puff. The three judges enter the courtroom, and a hush falls over the crowd.

BALLIF:
All rise for the honorable Judge
Chester Pendleton, Judge H.E.
Culbertson, and presiding judge, Judge
G.E. Kalbfleisch.

Everyone stands. The judges get to their spots and sit down; the gallery follows suit.

JUDGE G. E. KALBFLEISCH:
The prosecuting attorney, on behalf of
the state of Ohio, filed a motion for
the defendant Robert Daniels to appear
to the bench for cross examination
before the court.

The crowd sits up a little straighter, readying themselves for whatever is coming next.

JUDGE G. E. KALBFLEISCH: (CONT'D)
The defense may agree to follow this
motion or file a countermotion to have
this request denied. Mr. Beam?

L. H. BEAM:
The defense will not file for any
counter-motion, and agrees to any
cross examinations by the prosecution.

Lutz adjusts some papers on the table.

JUDGE G. E. KALBFLEISCH:
Would the prosecution like to call the
defendant, Robert Daniels, to the
stand for cross-examination?

THEODORE LUTZ:
Yes, your honor.

Judge Kalbfleisch motions towards the court guards. They grab
Daniels, cigarette in mouth, and walk him up to the stand.

JUDGE G. E. KALBFLEISCH:
The prosecution may now begin their
cross-examination.

Daniels looks out to the court gallery and adjusts the mic in
front of him the same way a stand-up comedian would. He taps
the mic and Lutz walks over to him.

THEODORE LUTZ:
Good morning, Mr. Daniels.

ROBERT DANIELS:
Mornin'.

THEODORE LUTZ:
Are you ready to begin?

ROBERT DANIELS:
Ready when you are.

Lutz smiles.

THEODORE LUTZ:
Earlier in the proceedings, your
father told the court about the time
that John West payed a visit to your
family's home.

ROBERT DANIELS:
Mhmm.

THEODORE LUTZ:
After that incident, when did you see
Mr. West again?

ROBERT DANIELS:
We had made some plans in the
reformatory, and when he was paroled

he called me up to try and set up a meeting.

THEODORE LUTZ:
Where did you two meet?

ROBERT DANIELS:
Well, we were both still technically on parole, and Johnny even couldn't leave the district. So I figured I'd come to him.

I was a little nervous about coming back to Mansfield, seeing as I had just gotten out of the reformatory.

CUT TO:

EXT. DAY: MANSFIELD REFORMATORY FIELD

23

July 17, 1947. ONE YEAR AGO.

A long line of uniformed prisoners are hunched over in a dirt field, tilling sections of the soil.

ROBERT DANIELS: (V.O.)
There was a guard at the reformatory, his name was Willis Harris. He pulled time in the reformatory and was on parole as a guard there. We called him "Red" Harris because of how red his big face got when he'd get pissed off.

Daniels and West are in the middle of the line, hunched over and coated in sweat.

JOHN WEST:
Hey, Robert.

Daniels wipes sweat from his forehead.

ROBERT DANIELS:
Yeah?

West looks around, then reaches into his breast pocket and pulls out a cigarette. Daniels is shocked, and also looks around.

ROBERT DANIELS:
Oh shit.

JOHN WEST:
Lil' something for later.

They smile at each other and get back to work.

CUT TO:

EXT. EVENING: EQUIPMENT BARN

24

The prisoners are lined up, returning their farming equipment in a barn outside the field. Daniels and West are in the back of the line.

They put their equipment back, and linger in the barn as the others walk back to the prison.

West pulls out the cigarette.

JOHN WEST:
You got a light?

Daniels takes a box of matches from his pocket. He ignites the match and raises up to West's face.

JOHN WEST: (CONT'D)
(taking a puff)
How'd you get them matches?

ROBERT DANIELS:
I traded Henry that Pin-Up for 'em.

West hands Daniels the cigarette.

JOHN WEST:
Fuck. I didn't even get to look at that one yet.

ROBERT DANIELS: (CONT'D)
(taking a pull)
Where'd you get the cig?

JOHN WEST:
Found it.

Daniels is disgusted by the taste.

ROBERT DANIELS:
(coughing)
Yea I can tell.

Daniels hands West the cigarette.

ROBERT DANIELS: (CONT'D)
Did I ever tell you I'm being
considered for parole?

JOHN WEST:
Says who?

ROBERT DANIELS:
That one guard Monroe. Beaner. Little
guy.

JOHN WEST:
(handing the cigarette back to
Daniels)
Oh yeah. I -

RED HARRIS: (O.S.)
(interrupting)
SON OF A BITCH!

Daniels and West look toward the door. Daniels throws the
cigarette on the ground and stomps on it.

Red Harris and another guard walk into the barn with batons
in hand. Harris is well over six foot and has a quite a bit
of weight on him.

RED HARRIS: (CONT'D)
What the hell are you two still doin
back here?

ROBERT DANIELS:
We were just about to head back.

RED HARRIS:
Oh, really? Maybe it's just the air in
here but it sure smells like someone
was smoking.
(beat)
You two boys wouldn't happen to be
smoking now, would you?

JOHN WEST:
(looking down)
No sir.

RED HARRIS:
Look at me when I'm talkin to you,
scrawny little piece of shit.

Harris' face reddens. He jabs West in the gut with his baton,

taking the air out of him and dropping him to his knees.

ROBERT DANIELS:

Awe, come on, you don't have to -

The other guard hits Daniels in his back with the baton, knocking him to his knees.

GUARD:

Don't talk back to an officer.

Daniels turns back around and swings at the other guard, landing the punch, and the two get into a scuffle.

West starts to get up, but Harris (whose face is now bright red) cracks him in the back of his head, knocking West out cold and sending his glasses flying.

The other guard gets a hit on Daniels, and he falls to the ground. Daniels tries to pull himself up, but Harris kicks him in the gut.

Daniels rolls over, spitting up blood, and West lies unresponsive.

RED HARRIS:

(crouching down to Daniels)

If I don't see you two back in line in the next five minutes... I'll kill ya.

JOHN NIEBEL: (O.S.)

What's goin' on over there?

RED HARRIS:

Sorry 'bout that warden, we're just leaving.

John Niebel stands behind the barn, peering in with his hands on his hips. Harris and the guard walk towards him, out of the barn, and Niebel pats them both on the back.

Sunset peeks through the cracks in the barn walls. Daniels wheezes, trying to get up.

ROBERT DANIELS: (V.O.)

Johnny and I had it out for Red. A lot of guys in there did. We were just the only ones that were gonna do something about it.

CUT TO:

INT. DAY: COURT ROOM

25

THEODORE LUTZ:

But you didn't do anything about it.

ROBERT DANIELS:

Well, we made a plan. That's why I
came back to Mansfield to meet Johnny.

THEODORE LUTZ: (V.O)

How'd you find him?

CUT TO:

EXT. MIDDAY: BUS STOP

26

July 8th, 1948.

ROBERT DANIELS: (V.O.)

All he gave me was the name of a bar.

The bus grinds to a halt and Daniels gets off. He looks at
his surroundings: a charming mid-american street with shops,
restaurants, and bars.

Daniels walks away from the stop and takes out a crumpled
note from his pocket, the same note West left in his mailbox.

"Joe's Grill, 1247 West Broad Street".

Daniels crumples it back into his pocket and walks a little
faster...

CUT TO:

INT. AFTERNOON: JOE'S GRILL

27

Daniels walks into the restaurant and scans its characters.
Little light gets through the windows and the bar seems to
have fast-forwarded a few hours into the evening.

He sees West sitting alone at the bar.

The two men lock eyes and both of them smile. West gets up to
meet Daniels halfway from the bar. West goes for a handshake,
but Daniels pulls him in for a half-wrestle half-hug.

ROBERT DANIELS:

Come here!

JOHN WEST:
(uncomfortably)
Alright! Alright!

The two of them make their way to the bar.

ROBERT DANIELS:
How's it feel to be a free man again?

JOHN WEST:
Free?
(scoffs)
I gotta get a job. I can't leave the
state. And I gotta check in with some
asshole every two weeks.

ROBERT DANIELS:
Don't sweat it, you'll get used to it.

They sit down at the bar.

JOHN WEST:
Hey, I - I'm sorry about the shit with
your dad and all.

ROBERT DANIELS:
Nah, come on. It's all good.

JOHN WEST:
How'd they take it? You leaving and
all.

ROBERT DANIELS:
They're fine. We don't gotta talk
about all that.

The conversation pauses for a moment.

ROBERT DANIELS: (CONT'D)
So, where you got the car parked?

JOHN WEST:
Actually I, um -

The bartender comes over.

ROBERT DANIELS:
Just two beers, put em on my tab.

Daniels turns back to West, ready for an answer.

JOHN WEST:
I had to ditch the car.

ROBERT DANIELS:
What?

JOHN WEST:
Well, it was stolen. You know, after a while, it's just... the plates get too hot. I got nervous is all. I had to dump it.

ROBERT DANIELS:
So you stole it.

JOHN WEST:
(beat)
Yeah.

ROBERT DANIELS:
What the fuck are we gonna do now?

JOHN WEST:
It's alright, we'll just get a new one.

ROBERT DANIELS:
No, I meant about Harris.

JOHN WEST:
Nothing changes, we'll stick to the plan. Right?

The bartender comes back with two beers.

ROBERT DANIELS:
(relieved)
Yeah. Fuckin eh. Cheers to that.

They cheers and down their beers.

CUT TO:

The bar is dimmer and busier. About a dozen beers sit in front of the two men and their conversation has loosened. They are visibly the drunkest patrons at Joe's Grill.

ROBERT DANIELS:
Johnny. Johnny!

JOHN WEST:
 (looking around)
 Huh?

ROBERT DANIELS:
 Johnny. You member that one time
 Harris fucked you up in the barn?

JOHN WEST:
 Why the fuck are you gotta bring that
 up?

They can hardly hear each other over the chatter in the bar.

ROBERT DANIELS:
 He just fucked you up real good.

JOHN WEST:
 You got your ass kicked just as bad.

ROBERT DANIELS:
 What?

JOHN WEST:
 He had you crying like a bitch.

ROBERT DANIELS:
 Huh?

West ignores Daniels and continues drinking his beer.

ROBERT DANIELS: (CONT'D)
 Hey! Johnny! You hear me?

West finishes his beer.

JOHN WEST:
 Fuck this bar.

He gets up and storms out of the bar.

ROBERT DANIELS:
 Johnny! Where you going?

Daniels drinks some of his beer and follows him out,
 staggering.

EXT. NIGHT: OUTSIDE JOE'S GRILL

28

Daniels catches up with West on the sidewalk.

JOHN WEST:
Fuck that bar. Can't hear shit.

ROBERT DANIELS:
No, no, I'm trying to talk about Red -

JOHN WEST:
(interrupting, pointing)
Hey...

Daniels follows his finger, and they both look at the lone car in a lot across the street. Directly under a streetlamp, the two-tone Pontiac looks like it was sent by God himself.

ROBERT DANIELS:
Whoa.

JOHN WEST:
Oh. Oh! I almost forgot.

West reaches in his coat pocket and pulls out the same gun he pulled on Mr. Daniels: a .38 pistol.

JOHN WEST: (CONT'D)
Lookie here.

Daniels starts laughing.

ROBERT DANIELS:
Oh shit. You still got it man.

West gives Daniels a devious smile.

ROBERT DANIELS: (CONT'D)
What are you gonna do with that thing?

West walks over to the car, dangling the gun from his hand. He cocks the gun back, about to smash the window.

ROBERT DANIELS:
Wait wait wait.

Daniels walks up to the car.

JOHN WEST:
C'mon. You're running my whole thing here.

Daniels opens the car door. The two exchange a look.

EXT. NIGHT: GULF GAS STATION

29

Buzzing neon lights illuminate the lonely gas station. The cashier looks to be about mid-20s; he chews gum and reads the newspaper.

He hears a car roaring down the road, but pays it no mind. The sound gets louder and louder.

CUT TO:

Daniels and West laugh their asses off in their newly stolen car. The radio blares music, and the engine nearly drowns it out.

CUT TO:

The cashier leans in a little to see what this noise is, which has now gotten close. He sees the car whip its way into the lot of the gas station and screech to a halt, taking up two parking spots. He steps back a little from the register.

CUT TO:

Daniels and West stumble out of the car. West takes the gun from his sock and stuffs it back waist.

ROBERT DANIELS:
What do you need that for?

JOHN WEST:
You got any money?

ROBERT DANIELS:
Um... No.

JOHN WEST:
Yea, that's what I thought.

ROBERT DANIELS:
Wait hold up, where's my piece?

JOHN WEST:
I don't know, fucking find one.

ROBERT DANIELS:
Fuck you.

Daniels stumbles back to the trunk of the car and pulls out a wrench. He, too, stuffs it in his back waist.

They zigzag their way into the gas station. Daniels throws the door open, stumbles inside, and points his wrench at the cashier.

He takes a step forward and falls over, knocking down a stand of newspapers and maps which sends papers everywhere.

ROBERT DANIELS: (CONT'D)

Oh shit!

West reacts instantly. He whips the pistol around the room, looking for a target, before landing on the cashier.

JOHN WEST:

(panicking)

Gimme the money! Gimme the fuckin money!

The cashier is frozen, unable to decipher the chaos in the room. Daniels sloppily pulls himself to his feet, again pointing his wrench at the cashier.

ROBERT DANIELS:

You fuckin heard him!

The cashier moves towards the register, still not really sure of what to do.

JOHN WEST:

Hurry it up!

Still puzzled, the cashier pops open the register.

JOHN WEST:

Put in the money in a bag.

The cashier looks around for a bag, unable to find one. He looks under the counter.

ROBERT DANIELS:

I don't have fucking time for this.

Daniels walks up the counter, and the cashier looks up just in time to see Daniels hit him square in the forehead with his wrench. The cashier drops instantly: his face hits the counter then the floor.

Daniels looks at his bloody wrench, then back at the cashier groaning on the floor.

ROBERT DANIELS: (CONT'D)

Shit.

West puts his gun away.

JOHN WEST:

Help me get this money, then let's get
the fuck outta here.

CUT TO:

EXT. NIGHT: GULF GAS STATION

30

Daniels and West stumble back to the car with grocery bags
full of money, dropping some on their way.

They plop back down in the car, and there's a beat. Daniels
gets out his wrench and wipes some blood off of it. West
grips the steering wheel and stares at it blankly.

JOHN WEST:

Alright.

(beat)

You up for another?

Daniels gives him a look of affirmation.

CUT TO:

INT. DAY: COURTROOM

31

THEODORE LUTZ:

How many gas stations did you rob in
total?

ROBERT DANIELS:

I dunno. Two? Three maybe?

THEODORE LUTZ:

Seems like these scores were pretty
easy.

ROBERT DANIELS:

Yeah, I guess so.

THEODORE LUTZ:

How'd they make you feel? If it was so
easy, how tempting was it to just keep
going?

ROBERT DANIELS:
Come on. There's a reason we didn't
stop there.

Beam rolls his eyes.

THEODORE LUTZ:
That's true, you didn't stop.

CUT TO:

EXT. MIDDAY: PARKING LOT

32

The two men let their car run as they sit in the parking lot
of the "Village Gun Store".

THEODORE LUTZ: (V.O)
You kept going.

ROBERT DANIELS:
They won't sell a gun to an ex-felon.
No way.

JOHN WEST:
Yes they will. Why wouldn't they?

ROBERT DANIELS:
There's just no way that's legal.
Plus, we're both on parole. How'd you
even get your piece?

JOHN WEST:
I found it.

ROBERT DANIELS:
What do you mean you found it?

JOHN WEST:
I don't know, I just found it lyin in
an alley.

ROBERT DANIELS:
So you don't even know if it works.

JOHN WEST:
Shit.
(pointing gun at him)
Should we find out?

Daniels grabs the gun and twists it out of his hand.

JOHN WEST: (CONT'D)

Ow.

ROBERT DANIELS:

You goddamn idiot.

JOHN WEST:

Sorry. Jesus.

Daniels pauses and looks around.

ROBERT DANIELS:

Alright, fuck it.

Daniels gets out of the car and slams the door behind him.

INT. MIDDAY: VILLAGE GUN STORE

33

Daniels opens the door with a jingle.

A heavier-set man with a goatee looks up from the gun he's cleaning behind the counter. He speaks with a Southern accent.

GUN STORE CASHIER:

How you doin today?

ROBERT DANIELS:

I'm alright, yourself?

GUN STORE CASHIER:

Can't complain. How can I help you?
Lookin for anything in particular?

ROBERT DANIELS:

I'm just... lookin for something
unique.

GUN STORE CASHIER:

I got some for you.
(reaching under the counter)
You a collector?

ROBERT DANIELS:

Of sorts.

The cashier sets a half dozen handheld guns on the counter. Daniels observes them and picks one of them up.

GUN STORE CASHIER:

The Mauser? This shouldn't be too

unique to you.

ROBERT DANIELS:

What?

GUN STORE CASHIER:

Nazis used these in the war. A kid your age, you served, right?

ROBERT DANIELS:

Right, of course. I was... aircraft maintenance, never saw much combat. Just a few bombing scares here and there.

GUN STORE CASHIER:

Where were you stationed?

ROBERT DANIELS:

I was over in... Dresden.

Daniels feels the weight of the gun in his hands.

GUN STORE CASHIER:

Dresden? That place got bombed to shit in '45.

ROBERT DANIELS:

I was lucky enough to get out of there before then, medical leave.

GUN STORE CASHIER:

(reaching for a handshake)

Well then son, I wanna thank you for your service.

The man shakes Daniels' hand.

GUN STORE CASHIER: (CONT'D)

My son was a Marine.

ROBERT DANIELS:

Of course. Those marines were brave men.

GUN STORE CASHIER:

You're goddamn right they are.

Daniels points the gun at the wall like he's aiming at a target.

ROBERT DANIELS:
How much you want for it?

GUN STORE CASHIER:
\$75, but your veteran's discount
knocks that down to \$50.

ROBERT DANIELS:
Perfect.

GUN STORE CASHIER:
Can I see some identification?

Daniels hands his driver's license to him. The man looks at
it, and furrows his brow. He looks back up at Daniels slowly.

GUN STORE CASHIER: (CONT'D)
Doesn't say here that you're a
veteran.

ROBERT DANIELS:
Oh, yeah, I still gotta that fixed.

GUN STORE CASHIER:
Ah, don't worry about it.

The cashier takes the gun and puts it in a bag along with a
box of ammo. Daniels gives him a fifty-dollar bill.

ROBERT DANIELS:
Thank you sir.

GUN STORE CASHIER:
Have a good day. Put that thing to
good use.

ROBERT DANIELS:
(smiling)
Will do.

EXT. MIDDAY: PARKING LOT

34

Daniels gets back in the car.

JOHN WEST:
You got it?

ROBERT DANIELS:
I just told him some bullshit story
about how I served in the war.

JOHN WEST:
(laughing)
And he bought it?

Daniels hands West the Mauser and backs the car out of the spot.

ROBERT DANIELS:
The man literally thanked me for my
service. Can you believe that?

West laughs, and they drive off.

CUT TO:

INT. EVENING: JOE'S GRILL

35

Daniels and West are back at Joe's Grill, but this time they sit at a booth away from the bar. They each have a plate of a burger and fries, and both of them sip a beer.

ROBERT DANIELS:
I think we should bump Harris tonight.

JOHN WEST:
Tonight?

ROBERT DANIELS:
Yeah, why not? I mean hell, we know
where he lives.

JOHN WEST:
We do?

ROBERT DANIELS:
Jesus Johnny. He's neighbors with the
warden. Whose house do you think that
was overlooking our field?

JOHN WEST:
Oh, yeah...

ROBERT DANIELS:
So. We're hitting Harris tonight then?

West sips his beer, unsure.

JOHN WEST:
Sure. How are we gonna do it?

ROBERT DANIELS:
We'll figure it out.

West drops his gaze and sighs. Daniels picks up on his uncertainty.

ROBERT DANIELS: (CONT'D)
Johnny, it's alright. Hey...
(raises beer)
Let's just drink ourselves some
confidence. Alright?

West smiles and raises his beer.

CUT TO:

INT. DAY: COURTROOM

36

THEODORE LUTZ:
And did those beers do the trick?

Daniels looks up, remembering the night.

CUT TO:

INT. NIGHT: JOE'S GRILL

37

Daniels and West sit at the bar. It's more crowded, and the two are much more drunk. They raise a shot glass.

ROBERT DANIELS:
To Red Harris!

JOHN WEST:
To Red-face fuckin Harris!

They clink glasses and take the shot. Both of them grimace as it goes down.

ROBERT DANIELS:
(to bartender)
One more! One more!

Both men are drunk, but West is visibly more intoxicated. The bartender walks over.

BARTENDER:
I'm cutting you boys off. You've been
here two nights and haven't moved a
muscle since you've sat down.

JOHN WEST:
Fuck you man! Pour us another!

BARTENDER:
There are plenty of other bars this side of town. You boys are more than welcome to come back another night.

ROBERT DANIELS:
I don't know Johnny... what do you think?

West glares at the bartender.

JOHN WEST:
I think this guy should open the fucking register.

BARTENDER:
Please sir, don't make me call police.

JOHN WEST:
I'm not fuckin playing around.

BARTENDER:
Excuse me?

West whips out his pistol and Daniels rolls with it, pulling out his new Mauser. The bar quiets.

JOHN WEST:
Get a bag and start fucking filling it up with everything you got.

The bartender makes his way to the register on the other side of the bar.

One group of bar patrons laugh at Daniels and West, thinking they're putting on a show.

BAR PATRON:
Here ya go pal! Shoot this!

The bar patron throws a plate at West, and more patrons laugh uproariously. Plates fly. Daniels points his gun into the crowd.

ROBERT DANIELS:
You wanna die? Huh?

BAR PATRON #2:
That gun ain't real.

Daniels fires a shot at the ceiling, but the heckling continues.

ROBERT DANIELS:
(to bartender)
Hurry the fuck up!

The bartender ignores him and keeps his eye on West. West shakes his gun, partially from the drinks, but mostly from a unsatisfied trigger finger.

The bartender gets to the register and fills a paper bag with bills. He finishes quickly and hands the bag to Daniels. The crowd has quieted, realizing that what they're seeing is real.

Daniels lowers his gun, but West keeps his gun on the bartender.

JOHN WEST:
Now the safe.

BARTENDER:
What?

JOHN WEST:
The fucking safe. Where is it?

The bartender backs away from him towards the backdoor.

BARTENDER:
I don't know what you're talking about.

ROBERT DANIELS:
Johnny there's no fuckin safe.

The bartender dashes for the door and West shoots at him but misses badly. The bartender escapes, and the bar jumps into chaos as everyone scrambles to leave.

JOHN WEST:
FUCK!

ROBERT DANIELS:
What the hell was that?

They dash out the front door and into the car.

ROBERT DANIELS: (CONT'D)
 (mocking)
 'Wheres the safe? Where's the safe?'
 It's a bar Johnny, not a fucking bank.

JOHN WEST:
 Shut up. I wanna hit another. Let's
 hit another.

Daniels pulls out of the parking lot.

ROBERT DANIELS:
 Not after the fucking stunt you just
 pulled.

JOHN WEST:
 We need to hit another, Robert.
 (pointing)
 That one, right there.

West motions to a bar down the street.

ROBERT DANIELS:
 Let's just bump Harris and get the
 fuck outta here.

JOHN WEST:
 No, this'll be a quick hit, I promise.
 We're already here, we might as well.

Daniels thinks about it for a moment. He looks through the
 rearview mirror into a backseat filled with their newly
 acquired money.

ROBERT DANIELS:
 Fuck it.

Daniels slams the brakes.

ROBERT DANIELS: (CONT'D)
 (sighs)
 In and out, got it?

CUT TO:

INT. DAY: COURTROOM

38

THEODORE LUTZ:
 And was it just a quick hit?

ROBERT DANIELS:
To an extent.

THEODORE LUTZ:
You arrived at Earl Ambrose's Tavern
at around 1:00 AM, correct?

ROBERT DANIELS:
Probably, I don't know. It was late.

CUT TO:

EXT. NIGHT: FRONT OF EARL AMBROSE'S TAVERN 39

Daniels parks the car haphazardly.

CUT TO:

INT. DAY: COURTROOM 40

THEODORE LUTZ:
You entered with a .25 Mauser
automatic pistol, and West entered
with a .38 caliber pistol, right?

ROBERT DANIELS:
Right.

THEODORE LUTZ:
Who walked in first?

CUT TO:

EXT. NIGHT: FRONT OF EARL AMBROSE'S TAVERN 41

West and Daniels get out of the car, guns tucked into their
pants, and walk up to the entrance.

CUT TO:

INT. DAY: COURTROOM 42

ROBERT DANIELS:
Johnny did.

CUT TO:

INT. NIGHT: EARL AMBROSE'S TAVERN 43

SLOW-MO: Daniels holds the door open for West, who wears a
look on his face of pure determination.

CUT TO:

INT. DAY: COURTROOM

44

THEODORE LUTZ:
Busy night?

ROBERT DANIELS:
It was pretty dead.

CUT TO:

INT. NIGHT: EARL AMBROSE'S TAVERN

45

SLOW-MO: From West's perspective: the last patrons of the bar drink and eat peacefully, some of them looking at him as he walks in. A woman looks down and notices the pistol in his hand.

CUT TO:

INT. DAY: COURTROOM

46

THEODORE LUTZ:
And what happened once you got inside?

ROBERT DANIELS:
Well, we weren't in there to get a drink.

THEODORE LUTZ:
Earl Ambrose was tending bar, correct?

ROBERT DANIELS:
I'd assume so.

THEODORE LUTZ:
Who initiated the robbery?

ROBERT DANIELS:
Johnny.

CUT TO:

INT. NIGHT: EARL AMBROSE'S TAVERN

47

West walks up to the bar and whips his gun out.

JOHN WEST:
Empty the fucking register.

Ambrose freezes.

CUT TO:

INT. DAY: COURTROOM

48

THEODORE LUTZ:

And when did his daughter walk in?

Daniels exhales, and looks up at Lutz.

CUT TO:

INT. NIGHT: EARL AMBROSE'S TAVERN

49

SLOW-MO: A girl, probably in her late teenage years, walks in through the back door. West turns to her and fires a shot without thinking; it hits her in her abdomen and she crumbles to the floor.

Patrons in the bar scream and scatter everywhere. Ambrose rushes over to the girl. Daniels moves to the register. Before Ambrose gets to her, West shoots him three times in the back, killing him instantly.

Daniels pries open the register and watches the events unfold.

The girl writhes on the floor in pain. West walks over to the girl, towering over her, gun pointed. Daniels shoves money into a bag and watches.

The other patrons have all left, and the only sounds are the shuffling bills and the cries of pain. West pulls his trigger, but the gun jams.

JOHN WEST:

You gotta be KIDDING ME!

He keeps pulling the trigger, but nothing happens.

JOHN WEST: (CONT'D)

Fuckin piece of shit.

He bangs the gun on a nearby table, trying to get it to work.

CUT TO:

INT. DAY: COURTROOM

50

THEODORE LUTZ:
And what did you do?

ROBERT DANIELS:
Well, Johnny's gun jammed...

CUT TO:

INT. NIGHT: EARL AMBROSE'S TAVERN

51

Daniels walks over to the girl with money in one hand and his Mauser in another. He looks at her as she writhes and wails, rubbing his thumb on the back of his gun. West watches, seeing if he'll take the shot.

ROBERT DANIELS: (V.O.)
I just... thought it'd be too easy.

Daniels wordlessly leaves out the back door, letting the girl live. West follows, and they scramble around the building to get back to their car.

JOHN WEST:
(huffing)
Why didn't you kill that bitch man, we
coulda been even! One a piece!

ROBERT DANIELS:
(panting)
You didn't need to kill anybody, we
already had the money.

JOHN WEST:
Shit, he ran over there too fast. I
didn't know what he was doin.

ROBERT DANIELS:
Fucking idiot.

They get to the car. As they drive off, a man outside the bar sees their license plate and writes it down on his hand.

CUT TO:

INT. DAY: COURTROOM

52

THEODORE LUTZ:
The license plate number was L4190,
was it not?

ROBERT DANIELS:
Maybe. I'm not really sure.

THEODORE LUTZ:
(turning to judges)
Let the record show that the
defendant's testimony corroborates
with forensic evidence found in
Exhibit D, eyewitness testimony, and
testing done on the bullet wounds of
both victims, found in Exhibit E.
(to Daniels)
You let her live, didn't you?

Daniels looks into the audience filled with women.

ROBERT DANIELS:
Maybe I did.

THEODORE LUTZ:
(turning back to the judges)
Seems like a pretty sane thing to do.

Daniels reacts, realizing Lutz set him up.

ROBERT DANIELS:
Would a sane person rob a bar?

THEODORE LUTZ:
For the right price.

JUDGE G. E. KALBFLEISCH:
Let the prosecution ask the questions,
Mr. Daniels. Actually, why don't we
take a 10 minute recess. This court
will meet back again at... 12:15.

He slams his gavel and the audience stands up, eager to get
out of the stuffy room.

Beam walks over to the guards.

L. H. BEAM:
I'd like to have a word with my client
in private.

The guards nod and bring Daniels back into the detainment
room. Beam follows.

INT. DAY: DETAINMENT ROOM

53

L. H. BEAM:
Sit down. Sit down.

Daniels obliges and they sit opposite each other on a metal table. Beam slides some annotated papers towards him, but Daniels pushes them back.

L. H. BEAM: (CONT'D)
Robert.

ROBERT DANIELS:
Yeah?

L. H. BEAM:
You don't know what you're getting yourself into.

ROBERT DANIELS:
I don't?

L. H. BEAM:
Robert, you gotta stop giving him all these little details. Remember, your memory of these times are limited. You need to keep reminding the judges of your demented mental state. You can't
-

ROBERT DANIELS:
(interrupting)
Listen - I... I have a plan here, alright? I have an angle, and I know how to play it. You gotta trust me.

L. H. BEAM:
As your attorney, my best advice for you is to stick to the script. I can't get you off the stand until Lutz finishes his questioning.

ROBERT DANIELS:
I know, I know.

L. H. BEAM:
(standing up)
And I don't trust you.

They both make their way to the door. Beam is about to open it, then pauses.

L. H. BEAM: (CONT'D)
Just tell me Bob: are you doing this
for yourself, or are you doing this...

He points at the swarms of regular people, chatting about the trial like it's the intermission of a movie.

L. H. BEAM: (CONT'D)
... for them?

Daniels knocks on the door, maintaining eye contact. A guard opens it and Daniels walks back out to the courtroom, alone.

Beam lingers, looking down.

CUT TO:

INT. DAY: COURTROOM

54

Daniels sits on the stand, glaring at Lutz. The crowd settles in their seats, the judges sit down, and Lutz stands up.

JUDGE G. E. KALBFLEISCH:
The prosecution may resume their
cross-examination.

THEODORE LUTZ:
Thank you, your honor.

Daniels won't take his eyes off of him.

THEODORE LUTZ: (CONT'D)
After the hold-up in Ambrose's Tavern,
where did you two go?

CUT TO:

INT. EARLY MORNING: CAR

55

Daniels drives, and Wests sleeps silently in the passenger seat. The sun hasn't quite come up, but the morning is starting to lighten and both men have sobered up.

West jerks awake.

JOHN WEST:
Where are we?

ROBERT DANIELS:
Almost to Kentucky.

JOHN WEST:

Why?

ROBERT DANIELS:

(shrugs)

You really wanna stay in Ohio?

JOHN WEST:

I mean, what the fuck are we gonna do
in Kentucky?

CUT TO:

EXT. DAY: OUTSIDE HORSE RACING TRACK

56

July 10, 1948

Daniels and West sit in the parking lot of a horse racing track and watch the people flood in. They wear gaudy, vibrant, accessorized suits. Daniels and West look at their own plain clothes, then look back up at each other.

CUT TO:

Daniels and West walk into the track wearing new plaid suits.

CUT TO:

EXT. DAY: HORSE RACING TRACK

57

The race is about to begin. West sits in his seat and looks at the horses with racing binoculars. Daniels sits down next to him carrying two beers and two betting tickets.

JOHN WEST:

Who'd you bet on for us?

Daniels hands him the ticket and a beer.

SHOT OF THE TICKET: DANIELS BET ON A HORSE NAMED "CITATION".

JOHN WEST: (CONT'D)

The fuck is this?

ROBERT DANIELS:

What?

JOHN WEST:

We get a fuckin parking ticket?

ROBERT DANIELS:
(pointing)
Jesus Christ! That's the horse's name.

JOHN WEST:
(looking back in binoculars)
Who names a horse Citation?
(looking back at Daniels)
And who *bets* on a horse named
Citation?

Daniels sits back and sips his beer.

ROBERT DANIELS:
You'll see.

The race begins.

STADIUM ANNOUNCER: (O.S)
And they're off!

West leans in and looks through his binoculars.

JOHN WEST:
Holy shit look at em go!

Daniels doesn't move, but follows them with his eyes.

JOHN WEST: (CONT'D)
God! Those fuckers are fast!

STADIUM ANNOUNCER: (O.S)
Citation moving up! Citation takes
third! Citation takes second! They're
coming down the final stretch!

JOHN WEST:
You seeing this?

Daniels just sips the beer.

STADIUM ANNOUNCER: (O.S)
Citation takes the lead! And Citation
wins! Citation wins!

JOHN WEST:
(standing up)
He won it! The fuckin thing won it!

Daniels smiles, and takes a pull at his beer. He stands up
and pats West on the back.

ROBERT DANIELS:
Let's go cash these in.

The two leave their seats.

CUT TO:

INT. AFTERNOON: COURTROOM

58

THEODORE LUTZ:
How much did you make at the
horserace, exactly?horserace, exactly?

ROBERT DANIELS:
To be honest, we never really counted.

THEODORE LUTZ:
You're telling me you never counted
your total earnings once?

ROBERT DANIELS:
No sir.

THEODORE LUTZ:
(chuckling)
Not even from the robberies?

Daniels shakes his head.

THEODORE LUTZ:
Why not?

ROBERT DANIELS:
I don't know really. It just never
really crossed our minds.

THEODORE LUTZ:
Why do you think that is?

Daniels pauses.

ROBERT DANIELS:
I guess it was just better not to
know.

THEODORE LUTZ:
Mhmm. You took the money to Nashville
after this, correct?

ROBERT DANIELS:
Correct.

THEODORE LUTZ:
And what'd you do there?

ROBERT DANIELS:
Well, we hadn't eaten all day.

CUT TO:

EXT. NIGHT: NASHVILLE BAR

59

ROBERT DANIELS: (V.O.)
So, we figured we'd indulge in some
fine dining.

Daniels and West dig into their meals: steaks, French fries,
and beer. The other tables are filled with well-to-do
businessmen and couples all dressed in suits and dresses.
Though the two wear their new suits, they still stand out.

Daniels takes a break from his meal and sips on his beer.
Across the restaurant he notices two younger women sitting
alone at the bar. They wear v-neck dresses with flowery
shoulders and tight waists.

West notices Daniels eyeing down the two girls.

JOHN WEST:
(chewing)
Who you lookin at?

ROBERT DANIELS:
How long have those girls been at the
bar?

JOHN WEST:
(looking)
I didn't even notice 'em.

ROBERT DANIELS:
They're sitting over there all alone
Johnny.

JOHN WEST:
So what?

ROBERT DANIELS:
Don't you see the problem with that?

JOHN WEST:
Huh?

ROBERT DANIELS:
Have you seen a single guy walk up to
those girls?

West takes a good hard look at the girls.

JOHN WEST:
I mean, I don't think so.

ROBERT DANIELS:
Exactly. Those girls came into this
bar. Alone.
(bites steak)
And I'm not gonna let them leave that
way.

JOHN WEST:
(sighing)
Robert, I just wanna enjoy my meal and
get a good night's sleep after all
that fucking driving.

ROBERT DANIELS:
Jesus Johnny, would you live a little?

Daniels leans into the table toward West.

ROBERT DANIELS: (CONT'D)
It's not like we don't have some money
to spend.

West doesn't disagree.

ROBERT DANIELS:
Come on. Let's go.

West ignores the question and puts his head down to continue eating.

ROBERT DANIELS: (CONT'D)
(pushing himself up)
I gotta do everything myself.

Daniels gets up and walks towards the girls, and West watches him. He shakes his head and looks back down at his food. He looks up again, still indecisive, and sees Daniels introducing himself to the girls.

Daniels points back towards West, obviously talking about him. West gets up awkwardly, banging the table, and grudgingly makes his way over.

ROBERT DANIELS:
 (to bartender)
 Let me get 3 beers...
 (sees West)
 Make that four! Make that four!

Daniels turns back to West and puts his arm on his back.

ROBERT DANIELS: (CONT'D)
 Ladies, this is my very good friend
 Johnny I was telling you about.
 Smartest guy I ever met.

JOHN WEST:
 Hey. How y'all doin.

DORIS:
 How do you do? I'm Doris.

ROBERT DANIELS:
 Like Doris Day. You kind of look like
 her too.

The girls laugh. Daniels gives West a smile, which he doesn't pick up on.

DORIS:
 This is Maria.

MARIA:
 (to West)
 Hello.

JOHN WEST:
 Hi.

Maria shakes West's hand, smiling. West and Maria lock eyes for a moment, shyly.

CUT TO:

INT. AFTERNOON: COURTROOM

60

THEODORE LUTZ:
 Those girls ever tell you how old they
 were?

CUT TO:

EXT. NIGHT: NASHVILLE BAR

61

The group is mid-conversation, laughing. Daniels finishes his beer.

ROBERT DANIELS: (CONT'D)
So how old are y'all?

CUT TO:

INT. AFTERNOON: COURTROOM

62

ROBERT DANIELS:
I don't recall that they ever did.

Lutz holds up two papers and hands them to the judges.

THEODORE LUTZ:
This is a police report from the
depositions on the incident.
(reading)
Doris Moore: 19 years old,
Martinsburg, West Virginia. Maria
Murphy: 17 years old, Martinsburg,
West Virginia.

Daniels tilts his head curiously.

THEODORE LUTZ: (CONT'D)
You're telling me that girl didn't
look 17?

ROBERT DANIELS:
She sure didn't act like it.

The dozens of girls in the gallery giggle to each other.

CUT TO:

INT. NIGHT: NASHVILLE BAR

63

Maria takes a shot at a bar alone, and we track with her as she drunkenly goes from the bar to the dance floor, bumping into patrons on her way. She meets the other three as they dance to live jazz.

Maria and West dance together wildly. Daniels swings Doris around to the music.

The song comes to an end, and everyone in the bar applauds the live band.

CUT TO:

LATER THAT NIGHT.

Maria and West slow dance to "A Sentimental Journey" by Doris Day playing from a jukebox. Most people have left the bar and the two dance mostly alone.

CUT TO:

Daniels and Doris make out drunkenly in a bathroom stall. Daniels gropes her breasts and slides his hand up her dress. It's a gross sight, like something you shouldn't be seeing.

CUT TO:

Close-up of Maria: she sweats profusely and looks nauseous as she dances with West. Her head starts to dip a little bit into his chest.

JOHN WEST:

Whatcha doin?

Maria turns around quickly and throws up on the dance floor. West lets go of her.

JOHN WEST: (CONT'D)

Oh shit!

West turns and jogs away toward the bathroom.

CUT TO:

West barges into the bathroom and starts frantically grabbing paper towels. He hears laughing from the stall.

JOHN WEST: (CONT'D)

Robert?

Daniels and Doris emerge from the stall giggling. Daniels tucks in his shirt and Doris straightens out her dress and hair.

ROBERT DANIELS:

What's with the towels?

JOHN WEST:

Uh... Maria threw up.

DORIS:

What?!

Doris grabs the towels from West and rushes out of the bathroom.

West moves to follow her, but Daniels grabs his collar and pulls him back into the bathroom.

JOHN WEST:

Hey!

ROBERT DANIELS:

Alright, what's the score here? What's next?

JOHN WEST:

What do you mean?

Daniels takes a switchblade comb out of his pocket and talks to West as he slicks his hair back in the mirror.

ROBERT DANIELS:

We can't stay in Nashville forever. We gotta keep moving. Don't forget Johnny, we're on the run here.

West shrugs it off.

JOHN WEST:

Don't look at it that way. We got our money, the job's over. They don't got no pictures of us in the papers.

ROBERT DANIELS:

Well, we can't go back North 'cause that'd be plain stupid. If we keep goin South they might pick up on us and start forming roadblocks.

JOHN WEST:

Then let's head West.

ROBERT DANIELS:

That's what I was thinking.

Daniels opens the door. He looks out to the dance floor and West follows his gaze.

ROBERT DANIELS: (CONT'D)

They coming along?

Doris and Maria are on their hands and knees cleaning up puke from the floor, and the bartender watches them with his hands

on his hips.

JOHN WEST:
Yeah, why not?

ROBERT DANIELS:
You really like this Maria broad?

JOHN WEST:
Well I - I mean - she's fun.

ROBERT DANIELS:
She's fun?

JOHN WEST:
(looking at Maria)
Yeah. Is Doris not fun?

ROBERT DANIELS:
No, she's fun alright.

Doris is bent over, cleaning, and Daniels stares at her ass.

ROBERT DANIELS: (CONT'D)
Loads of fun.

There's a pause, and West waits for Daniels to give the green light.

ROBERT DANIELS: (CONT'D)
Alright, let's get them in the car.

Daniels and West walk over to the girls.

ROBERT DANIELS: (CONT'D)
Girls, time to go!

The group makes their way to the door. The comes bartender back to the floor, which is still covered with puke.

BARTENDER #2:
Hey! The fuck you think you're going?

He walks out, trying to find the girls again, but the two-tone Pontiac speeds off and leaves him in a cloud of dust.

CUT TO:

INT. EVENING: LOBBY OF THE TODDLE INN

64

July 13, 1948, East St. Louis

Daniels writes on a series of papers at the front desk, signing them into a hotel. Doris stands next to him, looking around judgingly with a cigarette.

West sits with Maria on a lobby couch, whispering something into her ear that makes her laugh. He looks at Daniels proudly, which irritates him.

ROBERT DANIELS:
(to Doris)
Here.
(pulling out wallet)
Go get yourself a coke.

He hands her a few dollar bills.

DORIS:
It only takes coins.

Daniels exhales in frustration and rummages through his pockets for change. He drops several coins in her hand and she turns away from him.

West and Maria laugh again behind him. Daniels flips to a page asking for his full name and signature.

He stares at it for a moment, and we...

CUT TO:

INT. AFTERNOON: COURTROOM

65

THEODORE LUTZ:
So when you checked into the Toddle
Inn, in East St. Louis, what name did
you register under?

Daniels pauses, looking at Beam.

ROBERT DANIELS:
I don't remember.

THEODORE LUTZ:
I have with me here Exhibit F,
registry records from the Toddle Inn
in St. Louis on July 13th, around the
exact time you arrived.

He puts the same piece of paper under the projector, with the name "Robert Davis".

THEODORE LUTZ: (CONT'D)
This "Robert Davis" also paid in cash
for his stay in the king suite, room
402.

ROBERT DANIELS:
That's completely circumstantial.
There could be any number of guys
named "Robert Davis".named "Robert
Davis".

Lutz turns back to the judges.

THEODORE LUTZ:
I present the court with Exhibit G,

another registry record from the
Toddle Inn.

He puts the paper under the projector.

THEODORE LUTZ: (CONT'D)
On July 13th, minutes after "Robert
Davis" checked in, room 403 was also
paid for in cash by one...

We see the projection and the name on the paper.

THEODORE LUTZ: (CONT'D)
John West.

Daniels leans forward, rubbing his temple.

THEODORE LUTZ: (CONT'D)
Why use a fake name if you've got
nothing to hide?

L. H. BEAM:
Objection your honor, that's total
speculation.

JUDGE G. E. KALBFLEISCH:
Sustained.

THEODORE LUTZ:
I'm only pointing out that they were
two guys with no jobs, no credit
cards, stolen license plates, and used
fake names to book hotels.
How long did it take those girls to

find out?

ROBERT DANIELS:
To find out what?

THEODORE LUTZ:
What kind of people you two really
were. And what exactly you wanted to
do.

Daniels freezes, and we...

CUT TO:

INT. NIGHT: NIGHTCLUB IN ST. LOUIS

66

Daniels and West sit at a bar at a busy nightclub: a live band plays loud swing music, patrons dance wildly, and the two men sip dark beers.

They watch Doris and Maria on the dance floor as they swing in front of the band. Daniels leans into West.

ROBERT DANIELS:
What do you think about me marrying
Doris?

JOHN WEST:
What?

ROBERT DANIELS:
I'm serious. I wanna marry this girl.
Hey, it's not like I can't afford a
ring.

JOHN WEST:
How many days have you known her?

ROBERT DANIELS:
When you know, you know, Johnny.

JOHN WEST:
(sips beer)
Y'know, I've heard this out of you
before.

ROBERT DANIELS:
What do you mean?

JOHN WEST:
The girl from New York. Shit. What was
her name?

ROBERT DANIELS:
Doesn't matter. That was completely
different anyways.

JOHN WEST:
Was it?

ROBERT DANIELS:
What the fuck's your point here?

JOHN WEST:
Just sayin there's a pattern. You get

some money, you find a girl, and you
think you got it made. some money, you
find a girl, and you think you got it
made.

Daniels scoffs and takes a heavy swig.

JOHN WEST: (CONT'D)
Don't you get it man?
(gesturing at Doris)
You can buy her all the drinks and
clothes you want, but our cash is
gonna run out. We haven't even counted
it all. I mean shit, we killed
somebody. This won't go on forever.

ROBERT DANIELS:
So why don't we just get rid of the
girls? What are you doin' fooling
around with Maria then?

West shrugs.

JOHN WEST:
She's good company.

Beat.

ROBERT DANIELS:
You ever thought about sharing good
company?

JOHN WEST:
What?

ROBERT DANIELS:
Think about it. Me, you, Maria.
Fooling around. We could do it tonight
even.

JOHN WEST:
I can't tell if you're serious right
now.

Daniels leans back and sips his drink, deadly serious.

JOHN WEST: (CONT'D)
What about Doris?

ROBERT DANIELS:
Jesus Johnny, what about her? That's

my bride to be. You can't talk about
her like that.

JOHN WEST:
I just - I just don't understand why.

ROBERT DANIELS:
Why not? You've never tried it before.

JOHN WEST:
Well, neither have you.

ROBERT DANIELS:
If I would do it with anybody, Johnny,
I'd do it with you.
(nods at Maria)
It doesn't even have to be her, but...
we got her.

Maria continues to dance wildly.

JOHN WEST:
It can't be her.

ROBERT DANIELS:
Huh? Why not?

JOHN WEST:
It just can't be her. Anybody but her.

Beat.

JOHN WEST:
Betsy.

ROBERT DANIELS:

Huh?

JOHN WEST:

Your girl from New York, the other one
you wanted to marry. Her name was
Betsy.

ROBERT DANIELS:

Oh, yeah. Right. Wonder what she's up
to.

They continue watching Maria and Doris dance.

CUT TO:

INT. NIGHT: DANIELS' ROOM AT THE TODDLE INN

67

ESTABLISHING SHOT OF THE TODDLE INN

Daniels and Doris have messy, drunk sex once again; blankets,
clothes, and pillows are strewn across the floor. They both
make guttural, intense sounds. Daniels lowers himself down to
kiss her on the cheek.

He whispers in her ear.

ROBERT DANIELS:

I love you.

DORIS:

What?

Daniels raises himself up, getting face-to-face with Doris,
pausing his thrusts.

ROBERT DANIELS:

You know I love you, right?

DORIS:

(out of breath)

Yeah, I know.

Daniels stops for a moment to stare at Doris, waiting for her
to say it back. Doris ignores him, wrapping her arms around
him to continue the sex.

Daniels obliges with a grunt. He can't look at her, and
instead gazes blankly at the cash sitting at the table across
from the bed.

CUT TO:

INT. NIGHT: WEST'S ROOM AT THE TODDLE INN

68

West and Maria lay on their sides facing one another, already deep into a drunken conversation. Music plays softly on a radio in the corner of the room.

JOHN WEST:

So what do you see yourself doing? In the future, I mean.

MARIA:

Well, my folks always told me I should be a stenographer.

JOHN WEST:

Oh, like those typin things.

MARIA:

Yeah, I guess. I don't know too much about that though.

JOHN WEST:

Ye- yeah, me neither.

MARIA:

Deep down though, I always wanted to be a ballet dancer.

JOHN WEST:

Like... in a club?

MARIA:

No, like on the stage. Maybe on Broadway or something.

JOHN WEST:

Oh, like one of them fancy clubs.

MARIA:

(laughing)

No, it's part of the theater. It's a real art. I used to take classes when I was a little girl, but they got to be too expensive so my parents told me I couldn't keep dancing.

JOHN WEST:

Oh, uh, what kind of dance moves do they do at ballet?

MARIA:

Here.

Maria gets up, still a little drunk. She walks in front of the bed and puts her hands up in the air gracefully. She pirouettes perfectly, and West watches amazed.

JOHN WEST:

(clapping)

That was pretty damn good!

Maria giggles shyly.

MARIA:

I still practice sometimes.

(climbing back into bed)

What do you want to do in the future?

You sure don't look like a soldier.

JOHN WEST:

I wasn't. I turned 18 when the war ended, never got to enlist.

MARIA:

So, what is it then? What do you want to be?

West looks at her, then turns to lay on his back and stare at the ceiling.

JOHN WEST:

I don't know, really. I guess I never really thought about it. Is that bad?

MARIA:

No no, of course not. It's just...

JOHN WEST:

What?

MARIA:

Well, how'd you make the money you have now?

West pauses, caught between his affection for Maria and his inability to tell her the truth about himself. She lays on her side, looking down at West as he struggles to find words.

MARIA: (CONT"D)

You guys do seem to have plenty.

West sits upright, looking down at Maria.

JOHN WEST:

(sighing)

We made the money gambling up in
Michigan.

Maria looks at West in a way he's never been looked at
before, and makes West totally vulnerable.

MARIA:

John, you don't have to tell me the
truth if you don't want to.

West slinks back down to his back.

JOHN WEST:

It's just that me and Robert... we
have this thing. I just can't tell it
to you right now. It's good though,
trust me.

MARIA:

You and Robert are really close huh?

JOHN WEST:

Sure, I mean, yeah.

John gets up to eye-level with Maria, so that they both lay
on their sides facing one another.

JOHN WEST: (CONT'D)

Do you trust me?

Maria moves her right hand, sliding her fingers up his wrist
and interlocking her fingers with his.

MARIA:

I trust you, John.

She means it. West leans in for a kiss, but Maria tilts her
head away to give him her cheek. West pauses, unsure what to
do, but Maria smiles at him.

MARIA: (CONT'D)

Not tonight.

JOHN WEST:

(softly)

Okay.

Maria gives him a kiss on the cheek, then turns away from him to shut off the light. West lays back down, so shocked at his own vulnerability.

MARIA:
(facing away)
Goodnight.

West turns his light off.

JOHN WEST:
'Night.

They sleep on opposite sides of the bed, content.

CUT TO:

INT. AFTERNOON: COURTROOM

69

THEODORE LUTZ:
Mr. Daniels, do you recall what the
nightly rate was at the Toddle Inn?

ROBERT DANIELS:
I can't say for sure.

THEODORE LUTZ:
The Inn's records show that you paid
thirty-five dollars a night. Would you
say this is accurate?

ROBERT DANIELS:
That sounds about right, yeah.

THEODORE LUTZ:
You stayed at the Toddle Inn from July
13th to July 19th correct?

ROBERT DANIELS:
Yes sir.

THEODORE LUTZ:
That's a lot of money for just the one
week.

ROBERT DANIELS:
(shrugs)
We had a lot to spend.

THEODORE LUTZ:
When you were apprehended by police

there was a total of five hundred dollars found on you.

ROBERT DANIELS:
What about Johnny?

THEODORE LUTZ:
We'll get there eventually.

It's estimated that you two acquired around eight thousand dollars during your crime spree.

ROBERT DANIELS:
(aside)
Not too bad for an Army reject.

THEODORE LUTZ:
(ignoring Daniels)
My question for you, Mr. Daniels, is where did all that money go? It's hard for a man to acquire that much money so fast, and even harder to spend it in such a short amount of time.in such a short amount of time.

ROBERT DANIELS:
Fell out of my pocket.

JUDGE G. E. KALBFLEISCH:
Please comply, Mr. Daniels.

Daniels sighs, and we...

CUT TO:

MONTAGE

70

Song from the 40s begins to play, TBD

Daniels and Doris are in a watch store, choosing gold and silver watches from the display case

Maria takes West to a musical, talking him through the events as they happen

Doris tries on a tailored dress with a low neck, and Daniels watches her, smiling

West and Maria kiss on a park bench

Maria walks by Doris and Daniels' room, cracking the door open to find Doris having sex with a Navy sailor, still in uniform. She closes the door.

Daniels takes a swig out of a flask, then walks into a ring store

Maria and West eat ice cream outside at an ice cream parlor

Daniels and Doris have sex back at their hotel room: now littered with beer cans, empty liquor bottles, and a variety of women's clothes

West and Maria hold hands and walk around an art museum

(Night) The four of them walk around a downtown area, end up in a club: West and Maria dance (West dances awkwardly and Maria laughs) Doris and Daniels drink at a bar. Daniels puts the ring on her finger, a gold ring with a giant gaudy diamond.

INT. NIGHT: FANCY RESTAURANT

71

July 18, 1948

The four sit in a crowded Italian restaurant, dressed for the occasion. Empty plates and a half-drunk bottle of red wine sit on the table.

Doris holds her hand out in front of Maria, showing her the new ring.

DORIS:
Isn't it darling?

MARIA:
It's beautiful. That was a great choice, Robert.

West rolls his eyes.

ROBERT DANIELS:
Thank you. A girl this good looking should have whatever she wants.
(kisses her)
Now we just need to choose where we're gonna get married.

DORIS:
I've always dreamt of a wedding in

Paris.

West chokes on his wine abruptly.

ROBERT DANIELS:
Something fuckin' funny? Huh?

JOHN WEST:
(still chuckling)
Nothin. Sorry.

Daniels glares at him and the waiter brings the check. West goes to grab it, but Daniels steps in.

ROBERT DANIELS:
I got this one Johnny.

The bill sits on the table right between them, and they both have a hand on it.

JOHN WEST:
It's alright, my treat. Really.

ROBERT DANIELS:
No, I'll cover it.

JOHN WEST:
Hey, you just bought a nice ring. Come one, let me take care of it.

Daniels snatches it up.

ROBERT DANIELS:
It's my engagement Johnny, not yours.

They exchange another icy look, then West leans back and cedes to Daniels.

CUT TO:

The gang walks out of the restaurant and the valet pulls up their car. The valet guy drops the keys into Daniels' hand, and he slides him a few bucks.

ROBERT DANIELS:
Thanks.

CUT TO:

INT. NIGHT: CAR

72

Daniels drives with his hand on Doris' thigh, and West's arm is around Maria in the backseat.

They listen to a song on the radio in silence. The song ends and Daniels shuffles through some stations.

RADIO ANNOUNCER:

... The White Sox won an eleven inning marathon of a game earlier today, winning twelve to eleven. Right fielder Pat Seerey hit four home runs to lead the Sox to victory.

Daniels stays on the station and looks back at the road.

RADIO ANNOUNCER: (CONT'D)

In other news, President Truman announces a controversial end to segregation in the US armed forces. His new executive order directs equality of treatment and opportunity in all branches of the military.

Daniels scoffs and West shakes his head.

RADIO ANNOUNCER: (CONT'D)

Authorities in the Midwest are on the lookout for two criminals, described as two white men in their early twenties, who reportedly stole over eight thousand dollars across Ohio. The report also indicated that the perpetrators murdered one Earl Ambrose, a thirty-eight-year-old owner of Ambrose tavern.

DORIS:

Ugh. How terrible.

RADIO ANNOUNCER:

Police have announced a five-hundred-dollar reward for any useful information regarding the criminals.

As the report about them plays, Daniels and West lock eyes through the rear-view mirror. Tension is palpable throughout, and we can see both of their internal panic. West squirms awkwardly.

Maria looks at him suspiciously, then looks up at the rearview mirror. She catches Daniels looking back at them. Daniels takes his hand off Doris' thigh and looks back at the road.

The gears start to turn in Maria's mind. Daniels switches the station to play more music, and they continue to drive.

INT. NIGHT: WEST'S ROOM AT THE TODDLE INN

73

West and Maria walk back into their room. They're both tired; West crawls into bed and Maria goes into the bathroom for her nightly routine.

JOHN WEST:

I don't know about you, but it seems a bit soon for proposals.

Maria doesn't respond.

JOHN WEST: (CONT'D)

And a wedding in Paris? Come on. We don't have the money for that.

Maria pauses her routine for a moment, thinking about what West said. Maybe she's putting things together mentally.

JOHN WEST: (CONT'D)

I don't know. All I'm saying is that they should slow down and think things through, you know?

Maria finishes her routine and gets into bed wordlessly. West kisses her on the forehead, then rolls over to turn the light off. Maria lays on her side facing away from West, wide awake.

CUT TO:

INT. AFTERNOON: COURTROOM

74

THEODORE LUTZ:

So, when did you two think it was time to head back to Mansfield?

ROBERT DANIELS:

Originally, we didn't plan on heading back so soon.

THEODORE LUTZ:

Then why'd plans change?

ROBERT DANIELS:
Believe me, I didn't want it to end
the way it did. But...

THEODORE LUTZ:
(digging)
But?

Daniels draws a deep breath.

CUT TO:

EXT. DAY: GAS STATION

75

Their two-tone Pontiac rolls into a lonely gas station, and
all four of the gang get out.

ROBERT DANIELS:
Here.
(hands Doris some money)
Go get yourself whatever.

Doris takes the cash and goes inside with Maria. Doris looks
at snacks, and Maria goes to the newspaper stand. She flips
through the papers loosely, then pauses on a page.

The headline reads, "Ohio Killers' Trail Points South". Her
finger slides down the paper, skimming some of the column,
finally getting to a witness drawing of the suspects. The
drawings look uncannily similar.

She peers outside at them as they pump gas, then turns toward
Doris.

MARIA:
Doris, Doris! You gotta come here!

DORIS:
(hands full of snacks)
Gimme a second.

MARIA:
Doris, you need to see this.

DORIS:
What?

MARIA:
(pointing to the drawings)
Look!

Maria looks down at the papers.

DORIS:
Two crooks. So what?

MARIA:
Don't you see the resemblance?

DORIS:
To who?

MARIA:
John and Robert!

Doris looks up at the two, who are now shadow-boxing outside the station.

DORIS:
You *really* think they'd kill somebody?

MARIA:
We don't know where they're from, or what they do for a living. It says here these robbers stole eight thousand dollars. Why do you think they pay for everything in cash?

DORIS:
Bobby told me he couldn't get good credit cause he wasn't in the war.

MARIA:
You don't need to serve in the military to have good credit, Maria! You ever wonder why he didn't get drafted anyway?

DORIS:
I guess I never asked.

MARIA:
Didn't you hear the radio the other night? As soon as that report came on, Robert changed the station.

DORIS:
So what?

MARIA:
We don't know anything about them Doris.

DORIS:
Well, maybe you just don't know
anything about Johnny.

MARIA:
What?

DORIS:
Robert and I are *engaged*, Maria.
Doesn't that mean anything to you?

MARIA:
Doris. You've never met his family.
You don't know where you're getting
married. Aren't you even a little bit
scared?

DORIS:
No, because this...
(grabs newspaper)
...isn't them!

MARIA:
Doris, I'm scared. And the more I
think about this, all of this, the
more scared I get.

DORIS:
I've made a commitment, Maria. I'm not
leaving Robert, I'm sorry.

MARIA:
Please, I think... I really think we
need to leave, and -

DORIS:
(lashing out)
I don't care! I know my Bobby isn't a
murderer. You're just jealous because
Johnny doesn't want to marry you.

The gas station attendant watches the fight silently from
behind the register. Maria stares at Doris for a moment, and
just then Daniels walks in.

ROBERT DANIELS:
Come on girls, we don't have all day.

Maria rips the paper off the stands and storms outside.

ROBERT DANIELS: (CONT'D)
 Jesus, hey. What's up with her?

Doris kisses him on the cheek.

DORIS:
 Nothing, sweetheart.

She walks outside and Daniels follows. Maria brushes past West and gets in the car.

CUT TO:

INT. DAY: CAR

76

The four sit in silence in the car as it beats through the open highway. Doris thinks about what Maria told her, giving it some credence.

She looks through the rearview mirror at Maria, who is now silently weeping to herself. She wipes away the tears, ashamed, totally alone; both West and Daniels don't seem to notice. silently weeping to herself. She wipes away the tears, ashamed, totally alone; both West and Daniels don't seem to notice.

MARIA:
 (mumbling)
 You fucking lied to me.

JOHN WEST:
 (turning around, confused)
 Hmm? Who you talking to?

MARIA:
 You FUCKING lied to me!

Maria grabs him by his coat and starts hitting him wildly.

JOHN WEST:
 Hey! Hey! What's your problem?

ROBERT DANIELS:
 The fuck is going on back there!

West tries to gently hold her away, but Maria won't stop wailing at him. She smacks him in the face.

JOHN WEST: (CONT'D)
 Aye!

DORIS:

Maria!

She hits him again, hard, knocking his glasses off and cracking one of the frames.

JOHN WEST:

The fuck are you doing?!

West hits her back, kicking her backwards off of him. Doris retaliates from the front seat, throwing jabs.

DORIS:

Don't you fucking touch her!

Daniels slams on the breaks and pulls over.

ROBERT DANIELS:

Get out! Everybody get the fuck out!

West quickly opens his door and falls out of the car. Doris and Daniels get out. West grabs his broken glasses.

Maria sobs in the backseat, and Daniels opens her door and pulls her out.

EXT. DAY: CROP FIELD OFF THE HIGHWAY

77

JOHN WEST:

Maria, what the hell are you doing?!

MARIA:

(through sobs)

You fucking lied to us! You both
fucking lied to us.

ROBERT DANIELS:

Johnny what the fuck is she talking
about?

JOHN WEST:

I don't know.

(to Maria)

What's wrong? What are you talking
about?

Maria pants hard through tears, unable to speak.

DORIS:

Maria!

MARIA:
(panting)
You... are liars.
(regaining her breath)
You are both thieves. You stole all of
that money. And... you're murderers.
Both of you.

Maria doubles over, trying to settle down and breathe.

Daniels gives an icy look at West, who stares at Maria and
tries to figure out how she knew that. Neither man denies it.

ROBERT DANIELS:
(to Doris)
You need to help her, she's going
crazy.

DORIS:
Is she lying?

Daniels pauses.

DORIS: (CONT'D)
Is she lying?!

ROBERT DANIELS:
You need to help her.

DORIS:
(tearing up)
Bobby, I need you to be honest with
me.

ROBERT DANIELS:
I -

CUT TO:

West crouches down to Maria.

JOHN WEST:
(speaking softly)
Hey, what's going on. Come on, talk to
me.

MARIA:
Get away from me. Fucking murderer.

JOHN WEST:
Don't say that.

MARIA:
I should've known.

West tries to grab her hand.

MARIA: (CONT'D)
Get away from me.

JOHN WEST:
Maria, I - I love you.

Maria sits up and wipes away her tears.

MARIA:
Don't touch me.

JOHN WEST:
Stop. You don't mean that.

West tries to grab her hand again. Maria slaps him away.

MARIA:
Just go away. Please...

West looks at her, frozen, then turns and walks back to the car. Daniels notices and follows him. Doris goes over to check on Maria.

CUT TO:

West rummages through the trunk when Daniel catches up with him.

ROBERT DANIELS:
What are you doin'?

West doesn't respond, and walks over to the passenger door. He pulls out his gun, which was under the seat, and loads it with bullets.

ROBERT DANIELS: (CONT'D)
Whoa! Johnny you gotta settle down.
Johnny, hey, listen to me. You gotta calm down.

Daniels stands in front of West, backpedaling as he talks.

CUT TO:

Doris makes sure Maria is alright, then notices Daniels talking to West. She sees West's gun and her eyes widen.

CUT TO:

ROBERT DANIELS: (CONT'D)
Put the gun back in the car Johnny.
Here, just give it to me.

JOHN WEST:
(fuming)
They know everything Robert. They
gotta go. I - I gotta get rid of 'em.

ROBERT DANIELS:
Whoa, whoa, whoa. Calm down. Nobody's
killing anybody. She's my fiancé. I
can't just let you do this. I love -

JOHN WEST:
(interrupting)
Shut the fuck up! I can't keep
listening to this fiancé bullshit. I'm
done.done.

ROBERT DANIELS:
Johnny, you don't know what you're
talking about. Let's get the girls
back in car and -

JOHN WEST:
Fuck you! She turned you soft. We had
a fucking plan, and you got lost.

This is my call.

Over Daniels' shoulder, West sees the girls running off into
a the open field.

ROBERT DANIELS:
Just take a second and breathe,
Johnny, that's all I -

West fires two shots at the girls and both miss. The girls
scream and duck down, but keep running. The gun is right next
to Daniels' ear as it goes off, and he doubles over and grabs
his ear in pain.

ROBERT DANIELS: (CONT'D)
Agh! You fucking moron!

West goes after the girls and Daniels isn't there to slow him
down. He fires another shot: this one hits Doris in the leg.

She crumples to the ground.

MARIA:

Doris!

West walks aggressively now. Maria stops to tend to Doris.

CUT TO:

Daniels gets up and scrambles into the car to chase after West.

ROBERT DANIELS:

(anxious mumbling)

Fuck, fuck, fuck.

CUT TO:

West keeps walking at the girls with the gun at his side when Daniels starts the car. Maria is putting pressure on Doris's leg, trying to stop the bleeding.

DORIS:

(wincing in pain)

Oh my god, oh my god.

CUT TO:

Daniels starts driving just as West gets close.

CUT TO:

West is overcome with emotion. He stands about ten feet away from the girls and points his gun at them. We hear the car roaring towards closer.

DORIS:

Johnny stop! Please don't!

West doesn't listen, staring through tears at Maria, who stares right back at him. Daniels parks beside him.

ROBERT DANIELS:

Get in the car, Johnny! We gotta get the fuck out of here!

West's tears blow off of his face in the wind.

ROBERT DANIELS: (CONT'D)

Johnny!

West looks at Maria, fighting a battle against his own anger, a battle he's never won. Maria looks back at him, almost curious to see if he'll pull the trigger.

ROBERT DANIELS: (CONT'D)
Johnny, come on! It's not worth it!

Slowly, West brings his arm back down to his side. He walks awkwardly around the car and wordlessly gets inside.

Daniels whips the car around and drives away, leaving the girls for good.

INT. DAY: CAR

78

In the car, neither man speaks. West seems almost out of breath from having not killed Maria.

Suddenly, West snaps.

JOHN WEST:
Fuck!

West slams his gun on the dashboard, then hurls it into the backseat.

JOHN WEST: (CONT'D)
Fuck! Fuck!

He slams his hands on the dashboard, throwing a temper tantrum.

JOHN WEST: (CONT'D)
Fuckin bitch! Fuckin stupid bitch!

Daniels doesn't speak; allowing him to get it all out. West's raging tantrum morphs into sobbing. He doubles over in his car seat, crying into his hands.

He takes his glasses off, cracked and wet, and sets them on the dash. Daniels puts a hand on his back as he cries, and they drive off.

CUT TO:

INT. LATE AFTERNOON: COURTROOM

79

THEODORE LUTZ:
Were you worried that they'd go to the police?

ROBERT DANIELS:

At that point, it didn't matter to me.
And Johnny was too far gone to care.

THEODORE LUTZ:

I'm not asking about Mr. West, I'm
asking about you.

ROBERT DANIELS:

I gave her an \$800 ring. If she wants
to go the police, fuck her.

THEODORE LUTZ:

Mr. Daniels...

ROBERT DANIELS:

No, no. Why are you painting me as the
bad guy here? I saved their lives.
Johnny was going to kill them, I know
it.

JUDGE G. E. KALBFLEISCH:

Mr. Daniels, please refrain from
asking questions.

THEODORE LUTZ:

Well, let the record show that there
were no eyewitness reports of you and
Mr. West's time in St. Louis.

ROBERT DANIELS:

Damn right.

THEODORE LUTZ:

So... why come back to Mansfield? Why
go back to the place where you
committed your first crimes, where you
would most likely be recognized by
police?

ROBERT DANIELS:

(shrugs)

We sure as hell weren't gonna stay in
St. Louis, so we figured we'd go to
the last place they'd look for us.
Plus, Johnny just needed an
environment he was familiar with.

THEODORE LUTZ:

And why was that?

Beam gives Daniels a look saying, "Go ahead. Follow the plan."

CUT TO:

INT. NIGHT: RINGSIDE BAR

80

July 20th, 1948, Mansfield, Ohio

John West sits at the bar at a "floor show" (strip club) in Downtown Mansfield.

He drinks alone, and he drinks angrily, staring at two girls dancing on the floor. The girls don't explicitly look like Maria and Doris, but after enough drinks it's clear that West sees the resemblance.

ROBERT DANIELS: (V.O.)

Well, Johnny considered himself ugly and had a natural grudge against pretty things. He was at the point where he would kill anything that was pretty or beautiful. He wanted to destroy all beautiful things.

West gazes with unfocused eyes, like he's imagining some sort of pornographic violence. He fingers a pistol in his coat pocket, fiddling with the safety.

Daniels comes back from the men's room, breaking West's delusion.

ROBERT DANIELS:

Are we staying here all night or what?

West doesn't respond.

ROBERT DANIELS: (CONT'D)

Johnny, if you wanna get laid, I know some girls in town.

West smacks his lips and shakes his head.

JOHN WEST:

Fuck that.

Daniels follows his gaze.

ROBERT DANIELS:

Jesus, Johnny. You gotta stop thinking like this. Just let em go, man,

seriously. For all we know, those
bitches are ratting us out right now.

JOHN WEST:
They weren't "bitches".

ROBERT DANIELS:
(Sighs)
Yeah, they weren't.
(beat)
But we can't undo what happened back
there. They're gone Johnny, for good.
Believe me, I'd give anything to have
them back, but that's just not in the
cards for us.

The reality sets in for both of them. Daniels puts his hand
on West's shoulder.

ROBERT DANIELS: (CONT'D)
But hey, the ride still isn't over. We
gotta keep going, alright?

JOHN WEST:
(mumbling)
Alright.

ROBERT DANIELS:
Alright?

JOHN WEST:
Yeah, okay, I got it.

ROBERT DANIELS:
Good, now let's go see those girls I
was talking about. Come on.

Daniels physically pulls him out of his chair.

JOHN WEST:
(slapping him away)
Alright, alright, Jesus. I'm coming.

EXT. NIGHT: DOWNTOWN MANSFIELD

81

The two leave the club. Out on the sidewalk, Daniels offers
West a cigarette.

ROBERT DANIELS:
This'll help ya calm down.

JOHN WEST:
I swear to God, if you tell me to calm
down one more goddamn time.

West turns around and walks away from Daniels.

ROBERT DANIELS: (CONT'D)
Johnny! Johnny!

Daniels lingers in the spot for a moment, perhaps waiting for
West to come back, and then jogs to catch up with him.

ROBERT DANIELS: (CONT'D)
Hey! Wait up a sec.

West doesn't wait up, instead walking straight to a payphone
beside the road.

ROBERT DANIELS: (CONT'D)
Johnny. Hey! Who you calling? Any
girls?

West flips through a phone book dangling from a chain.

ROBERT DANIELS: (CONT'D)
Who ya looking for?

JOHN WEST:
(mumbling)
Harris.

ROBERT DANIELS:
Huh?

JOHN WEST:
Red Harris. Red fucking Harris,
Robert.

ROBERT DANIELS:
So you couldn't kill Maria and now you
wanna bump Harris?

West glares at Daniels, who realizes that he overstepped.

JOHN WEST:
(flipping pages)
Red Harris was the whole reason we met
back up in the first place. I'm going
through with the plan.

ROBERT DANIELS:
I thought we gave up on that.

JOHN WEST:
You gave up on that. He beat the shit
out of us every damn day back in the
Reformatory. I can't just forget that.

Daniels pauses for a moment, trying to muster the vengeful
motivation he once had.

JOHN WEST: (CONT'D)
We know where he lives, Robert. Shit,
you said that yourself.
(beat)
Listen, Robert, you don't have to come
along for this, really. I just... I
need to do this. This my hit, not
yours.

Daniels raises an eyebrow.

ROBERT DANIELS:
I thought this was our plan?

JOHN WEST:
Not anymore.

ROBERT DANIELS:
What? What exactly are you trying to
say?

JOHN WEST:
You're different now... somethings
changed.

ROBERT DANIELS:
What the fuck does that even mean?

JOHN WEST:
Well, I don't know, you just -

ROBERT DANIELS:
You think I'm some kinda pussy now,
huh?

JOHN WEST:
That's not the point. You -

ROBERT DANIELS:
God, you got ONE kill on me and all of

a sudden you're hot shit.

We BOTH ran off with those girls
Johnny. A few hours ago, you were the
one crying about it. But no, I'm the
soft one.

Daniels pauses for a moment of white-hot silence.

ROBERT DANIELS:
We're going.

JOHN WEST:
Hmm?

ROBERT DANIELS:
No, let's go, let's see who's the soft
one. Let's see who's the bitch.

JOHN WEST:
A - Alright.

ROBERT DANIELS:
Yea?!

JOHN WEST:
Yea!

West picks up the phone and starts dialing.

ROBERT DANIELS:
Wait, what are you doing?

JOHN WEST:
I'm calling him up.

ROBERT DANIELS:
Why the fuck are you trying to call
the guy?

JOHN WEST:
What do you mean?

ROBERT DANIELS:
If the plan is to go bump him, why
would you call his house first? Why
not just drive on over there?

JOHN WEST:
I don't know, I just wanted to call
him up is all.

ROBERT DANIELS:
To tell him what, that you're coming
to kill him?

JOHN WEST:
(slamming the book shut)
I don't know, alright! Goddamn. I just
-

Daniels laughs and walks a few paces away.

ROBERT DANIELS:
Christ, I can't even imagine what
you'd do without me.

CUT TO:

INT. LATE AFTERNOON: COURTROOM

82

THEODORE LUTZ:
Do you think Mr. West could've done
this without you?

Daniels smokes a cigarette for a moment, smiling. He's happy
Lutz asked. Beam's elbows are on the table, his head is in
his hands.

EXT. NIGHT: TWO-TONE PONTIAC

83

Daniels and West ride their two-tone Pontiac through the
night, each with a bottle of liquor in hand.

There's a strange calm about the both of them; they've found
their way again.

EXT. NIGHT: FARMHOUSES ON NORTH MAIN STREET

84

Mansfield Ohio, July 21st, 1948, 1 A.M.

They stop on the side of some houses near a large field. A
heavy rain makes it hard to see out of the car windows.

ROBERT DANIELS:
(peering out)
Which one is Red's?

JOHN WEST:
Umm...

West moves his head back and forth as if he's finding windows
of space within the rain.

ROBERT DANIELS:
You've got no fuckin idea, do you?

JOHN WEST:
(pointing)
It's that one.

Daniels follows his finger to the vague shape of a house.

ROBERT DANIELS:
You're sure?

JOHN WEST:
Yeah, I'm fucking sure.

Daniels pulls the car into the driveway.

West gets out of the passenger side and looks at the row of houses, sticking his gun into his pants. He squints through his cracked glasses at the property two houses down, trying to pull it out of his memory.

Daniels gets out into the rain.

ROBERT DANIELS:
You ready?

JOHN WEST:
Yeah. I'm ready.

ROBERT DANIELS:
You think he'll still recognize us?

JOHN WEST:
I dunno.

ROBERT DANIELS:
I'll stay back a bit, and you go knock on the door. Your glasses are all fogged up, Harris won't have a clue.

JOHN WEST:
Okay, alright.

West eyes down the house two doors down, but shakes his head and walks toward the front door. Daniels ducks behind a bush.

West walks up the porch stairs, but slips on one of the rickety ones. He knocks on the door, then ruffles up his wet hair as a "disguise".

West waits a moment, but there's no answer. He turns back to Daniels and shrugs.

ROBERT DANIELS:
He's probably sleepin. Knock again.

West turns back to the door and knocks again, louder this time.

The two men pause, trying to hear through the rain if there's anything happening in the house. Seconds go by with nothing.

West sighs and takes a step back. He raises his foot like he's getting ready to kick the door down, then a light goes on in the house. West and Daniels both straighten up instantly, ready for anything. West hears several locks unlocking from inside, and the door cracks open a few inches.

A man's eye can be seen within the crack, and he peers at West suspiciously.

MAN:
What do you want?

JOHN WEST:
Sorry to disturb you at this time of night sir. My car here just broke down. Is there any chance I could come inside and use your phone?

MAN:
I'm sorry, I can't help you.

He begins to close the door.

JOHN WEST:
Please sir. I just need to call someone to come pick me up. I can't stay out here all night in this weather.

The man pauses.

JOHN WEST: (CONT'D)
Please.

MAN:
Oh, alright. Make it quick.

JOHN WEST:
 (grinning)
 Don't worry, I'll be in and out.

The man closes the door to unlock the chain. West looks over to Daniels and gives him a nod. Daniels darts up the stairs and stands next to the door so that the man can't see him.

The man opens the door, and West walks in. As soon as West steps foot in the house, Daniels barges in from behind him and whips out his pistol.

INT. NIGHT: NIEBEL HOUSE

85

ROBERT DANIELS:
 Remember us, Red, you stupid fu -

Daniels and West both look at John Niebel, who stands with his hands up in his pajamas. Gun still drawn, Daniels looks back at West.

ROBERT DANIELS: (CONT'D)
 (to West)
 You fucking moron. You stupid fucking moron. This is the wrong goddamn house.

Niebel moves his hand just slightly toward a drawer, and Daniels reacts.

ROBERT DANIELS: (CONT'D)
 Don't you fucking move!

West reacts to this now, pulling out his gun.

JOHN WEST:
 Fuck. What do we do?

Nolana Niebel, stirred from sleep by all the noise, walks down the stairs and finds her husband held at gunpoint. She freezes halfway down the staircase.

ROBERT DANIELS:
 I got her. You take care of him.

Nolana turns around and darts back upstairs, but Daniels rushes up the stairs to go after her. West turns his attention to Niebel.

JOHN WEST:
 Let's go.

He shoves Niebel with the blunt end of his pistol through the hallway and into the kitchen. West motions him into a chair with his gun and he dutifully sits down.

JOHN WEST: (CONT'D)
Where's your guns?

JOHN NIEBEL:
I don't keep any guns in the house.

JOHN WEST:
You think I'm a fuckin idiot?

West tears open a cupboard but finds only cutlery inside.

JOHN WEST: (CONT'D)
You're the warden, right? I know
you've got guns in here somewhere.

JOHN NIEBEL:
I'm telling you, I don't.

A series of loud bumps come from upstairs.

JOHN NIEBEL: (CONT'D)
What the hell is he doing up there?

JOHN WEST:
(tearing through cupboards)
Wish I knew.

JOHN NIEBEL:
Listen, whatever business y'all got
with me has nothing to do with my
wife... or my daughter.

JOHN WEST:
(pauses)
You've got a daughter?

JOHN NIEBEL:
Yes.

JOHN WEST:
How old is she?

JOHN NIEBEL:
21.

There's a loud thump from upstairs again, followed by two female voices and Daniels' yelling. West pauses again before

opening the next cupboard. Niebel is distraught.

JOHN WEST:
Aha! You fuckin' liar.

West pulls out a shotgun, a .22 caliber rifle, then a .38 revolver.

He turns back to face Niebel, and walks over to the kitchen table where he sits. West places the .38 revolver on the table and spins it around like a top. He sticks his own gun in his belt and watches the revolver spin. Niebel is tense and confused, not sure what game he's playing.

West pulls out a cigarette and lights it.

JOHN WEST: (CONT'D)
Go on, take it. I dare ya.

Niebel looks up at West, who grins down at him. Niebel's gaze moves down to the revolver, which has stopped spinning.

Another thump and several footsteps are heard from the second floor. West doesn't take his eyes off of him. Niebel stares at the gun, summoning up the courage to reach for it.

Suddenly the wife and daughter burst into the room, fresh out of bed and still in their pajamas. Daniels leads them at gunpoint into the kitchen, and sees the gun on the table.

ROBERT DANIELS:
Johnny, what the hell are you doing?

West grabs the revolver from the table and clocks Niebel hard on the head. The two women gasp in fear, and Niebel doubles over, grabbing his head.

ROBERT DANIELS: (CONT'D)
What the fuck, Johnny?

JOHN WEST:
I thought he was gonna reach for it...

ROBERT DANIELS:
Why the fuck was it on the table in
the first place?

West stares at him blankly.

ROBERT DANIELS: (CONT'D)
(sighs)
Did you at least figure out where
Harris lives?

JOHN NIEBEL:
(still in pain)
Willis Harris?

ROBERT DANIELS:
Is that his name?

JOHN NIEBEL:
He lives two houses down from here,
near the field.

JOHN WEST:
Goddamnit, I knew it.

ROBERT DANIELS:
You *knew* it!?

JOHN WEST:
(shrugging)
It was 50/50.

ROBERT DANIELS:
(angrily)
50/50?

The Niebel family watches blankly, not sure if they're still
dreaming.

JOHN WEST:
Why are you so mad? We know where he
lives now.

ROBERT DANIELS:
Well now we have to deal with them.
What are we gonna do with them?

JOHN WEST:
(to John Niebel)
Y'all got any rope?

JOHN NIEBEL:
I don't know, maybe.

ROBERT DANIELS:
Where would it be if y'all had some?

NOLANA NIEBEL:
(voice trembling)
The basement. It'd be in the basement
if we had any.

CUT TO:

INT. EVENING: COURTROOM

86

THEODORE LUTZ:
Do you remember what you did in the
basement?

ROBERT DANIELS:
We were going to tie them up in the
basement, but they didn't have any
rope.

THEODORE LUTZ:
What was the reason for wanting to tie
them up?

ROBERT DANIELS:
So they couldn't get back into town.
So we could go back and get Harris. We
didn't have no rope.

THEODORE LUTZ:
Did you take them out of the basement?

ROBERT DANIELS:
Yessir. I held a gun on them. My rod.

THEODORE LUTZ:
You're referring to the .25 caliber
German Mauser?

ROBERT DANIELS:
Yessir.

THEODORE LUTZ:
Then where did you take them?

CUT TO:

INT. NIGHT: TWO TONE PONTIAC

87

Daniels drives and West sits in the passenger seat, pointing
the revolver at the Niebels, crammed in the backseats. They
drive through straight and open highway in rural country.

The two female Niebels sit on either side of John Niebel, cowering and looking out the window. John Niebel stares at the two of them like he's trying to put a name to the face.

JOHN NIEBEL:
Where are you taking us?

JOHN WEST:
Shut up.

John Niebel says nothing, and Daniels stares at him through the rearview mirror.

ROBERT DANIELS:
Make em strip, Johnny.

West looks at Daniels, confused.

ROBERT DANIELS: (CONT'D)
Have em take their clothes off so they
can't get back into town. Go on.

West looks back at the family.

JOHN WEST:
You fuckin heard him. Get undressing.

John Niebel starts pulling his shirt off, and the other two follow suit. They all strip down to their underwear, and pause with their clothes on their laps. Daniels watches them.

ROBERT DANIELS:
I said take it all off. Everything.

West motions them with his gun, and John Niebel removes his underwear. The women take their bras and panties off as Daniels watches intently from the front seat, hardly paying attention to the road.

ROBERT DANIELS: (CONT'D)
Now toss it all out the window.

Phyllis Niebel slowly cranks the window open, and the Niebels toss their clothes out. Their naked skin squeaks awkwardly against the leather seats.

John Niebel still stares at the two men in the front, now starting to put the pieces together.

JOHN NIEBEL: (CONT'D)
You know, I seen you two working on

the farm a couple years back.

Daniels and West don't react.

JOHN NIEBEL: (CONT'D)

I had a feeling you two were those
drawings in the paper. You two killed
that bar owner, didn't you?

Now, Daniels and West exchange a glance.

JOHN NIEBEL: (CONT'D)

Earl Ambrose. You killed ole Ambrose.
Yeah... nice bar till you two came
around.

West tightens his grip on the revolver. Nolana grabs John
Niebel's leg, trying to get him to shut up. Daniels slows the
car down and pulls over in front of a corn field. The rain
has stopped, and the sky has cleared to reveal a bright full
moon, which combines with the car's headlights to illuminate
the endless rows of corn.

Daniels steps out of the car into the wet mud, and West
follows.

EXT. NIGHT: CORNFIELD

88

West leads the three Niebels into the cornfield with Daniels
in the back. Like a row of ducks, they walk about 50 yards
into the field.

JOHN WEST:

Alright, line up.

The three Niebels get in a line facing away from West and
Daniels, covering their genitals with their hands.

JOHN WEST: (CONT'D)

Now get on your knees.

They kneel down, almost like they're praying.

ROBERT DANIELS:

(to Niebels)

You got three minutes to get right
with the Lord.

Phyllis cannot contain her weeping any longer. Daniels and
West step about ten paces away.

ROBERT DANIELS: (CONT'D)

(to West)

We can't just leave 'em here. They know who we are, shit, we worked on his field. If we go get Harris, then we'll be wanted for kidnapping and murder. If we let them go, we'll be hunted for the rest of our lives. We gotta just cut our losses here.

JOHN WEST:

So, what? They have to die?

ROBERT DANIELS:

It's us or them Johnny. They gotta go.

JOHN WEST:

Fuck...

ROBERT DANIELS:

Hey, he oversaw Harris, you know. He knew what he did to us, and he could've done something about it, but he didn't. He's just as guilty as Red.

JOHN WEST:

But his daughter -

ROBERT DANIELS:

Like I said, Johnny, it's us or them.

West stares at the kneeling naked family in the cool summer night.

JOHN WEST:

(quietly)

Alright.

West walks over to them and pulls out the revolver. Daniels gives him a nod, and West raises his gun to the back of Nolana's head.

He cocks the gun, and we...

CUT TO:

INT. EVENING: COURTROOM

89

ROBERT DANIELS:

I'm sorry, if I don't drink some water before long, I'm gonna dry up and blow

away.

Beam gets up from his desk and walks up to the stand to hand Daniels a glass of water.

L. H. BEAM:
(under breath)
Please Robert, stick to the script.

Daniels sips it slowly, ignoring him.

THEODORE LUTZ:
Who pulled the trigger, Robert?

Daniels looks down, frowning, like something is escaping him.

ROBERT DANIELS:
I was standing in front of John
Niebel. I remember Johnny pulling the
trigger of a gun and trying to
shoot... Mrs. Niebel, I believe it
was.

CUT TO:

EXT. NIGHT: CORNFIELD

90

West stands behind Nolana Niebel and pulls the trigger. Nolana flinches up, but the gun doesn't go off. West pulls the trigger again and again, but it won't fire.

JOHN WEST:
Damn thing's jammed!

He hits it several times, and tries it again. West then looks back to Daniels, then down at his gun.

JOHN WEST: (CONT'D)
(under his breath)
Shit.

Daniels glares at West.

CUT TO:

INT. SUNSET: SUBURBAN PARKING LOT

91

Daniels finds himself in their two-tone Pontiac in the parking lot of a gas station just off the highway. The sun is low on the horizon, and Daniels studies his surroundings. He sees the sign next to the highway, "Interstate 90 East".

West exits the gas station carrying a liter of coke, a bottle of Jack Daniels, and a map. He makes his way to the car and plops down in the passenger seat.

ROBERT DANIELS:
Where the hell are we Johnny?

JOHN WEST:
What do you mean? We're in Cleveland.

ROBERT DANIELS:
What happened with the Niebels?

West laughs. Daniels looks at him, letting him know he isn't playing around.

JOHN WEST:
Are you serious? You killed 'em
Robert. You killed them all. Like I
said, you've got more'n me now.

West pops the bottle of Jack open as Daniels processes this new information.

JOHN WEST: (CONT'D)
You've got the chair facing you, same
as I if we get caught.

Daniels stares at the steering wheel. West mixes the coke and whiskey and hands the cup to Daniels.

JOHN WEST: (CONT'D)
So what now? Where you tryna go?

ROBERT DANIELS:
(takes a swig)
I don't know, Johnny. I'm tired. Let's
just find a rest area and we can sleep
in the car tonight.

West begins mixing a drink for himself.

JOHN WEST:
Fine by me.

Daniels, still trying to process this information, reverses the car out of the spot, and they drive off.

CUT TO:

INT. EVENING: COURTROOM

92

THEODORE LUTZ:

So let me get this straight, you have no recollection of firing any shots?

ROBERT DANIELS:

I can't truthfully say I fired the shots. I had a faint recollection of firing a shot. There is possibility.

Beam nods at Daniels subtly.

THEODORE LUTZ:

Just to be clear, you were completely unaware that you drove from Mansfield to Cleveland?

ROBERT DANIELS:

Yessir.

THEODORE LUTZ:

A nearly two hour drive.

Daniels shrugs.

ROBERT DANIELS:

Physically, there's a vague memory of driving a car. But mentally, I'm afraid I just cannot recall.

THEODORE LUTZ:

So your body remembers, but not your mind?

ROBERT DANIELS:

I suppose you could say that, yes.

Lutz sighs at the ridiculous response.

THEODORE LUTZ:

You were captured on the July 23rd, correct?

ROBERT DANIELS:

Yessir.

THEODORE LUTZ:

And on the night of the July 21st, you slept in your car?

ROBERT DANIELS:
That's correct.

THEODORE LUTZ:
So July 22nd was your last full day as
a free man.

Daniels doesn't answer the question right away.

ROBERT DANIELS:
Depends how you define free.

JUDGE G. E. KALBFLEISCH:
Where are you taking this, prosecutor?
It's getting late.

THEODORE LUTZ:
Sorry, your honor, but this court
needs to know what these two did on
their last day as free men.

CUT TO:

EXT. MORNING: OUTSIDE AKRON GUN STORE

93

Akron, Ohio, July 22nd, 1948: 10 a.m.

West walks out of the store holding a long paper bag,
jingling the bell at the door. Daniels leans on the car with
a cigarette, waiting for him.

ROBERT DANIELS:
You get it?

JOHN WEST:
Yup. I told him the same bullshit
story you used to get yours.

ROBERT DANIELS:
(tossing cig)
What'd you end up getting?

JOHN WEST:
.30 Cal rifle.

West takes the massive carbine rifle out of the bag.

ROBERT DANIELS:
What the fuck do we need that for?

JOHN WEST:
We? This one's mine.

ROBERT DANIELS:
Johnny, you're not stormin' fucking
Normandy.

JOHN WEST:
The guy at the counter really talked
me into it. 2000 feet per second.

ROBERT DANIELS:
We already have a rifle, Johnny. Isn't
that a bit... much?

JOHN WEST:
When it comes time, I don't want
anything jamming on me again.

ROBERT DANIELS:
Whatever. Just make sure it fits in
the trunk.

Daniels gets in the driver's seat and West goes around to
open the trunk, revealing a collection of guns fit for a
small army. He tosses the .30 caliber in and walks up to the
passenger seat.

JOHN WEST:
(getting in)
I don't know about you, but I slept
like shit last night.

ROBERT DANIELS:
What about a bed and breakfast?

West opens the glove compartment and gets out a map.

JOHN WEST:
Closest one is in... Tiffin.

ROBERT DANIELS:
Tiffin it is.

Daniels takes a sip from his jack and coke before starting
the car.

CUT TO:

EXT. LATE AFTERNOON: CLYDE MITTENS'S BED AND BREAKFAST 94

The grey two-tone Pontiac is parked outside of "Clyde Mitten's Bed and Breakfast".

CUT TO:

INT. LATE AFTERNOON: CLYDE MITTENS'S BED AND BREAKFAST 95

TRACKING RIGHT:

A wad of cash, cigarettes, and car keys sit on a table in the corner of the room. West lays flat on his stomach a messy, blanket-strewn bed. He's stripped down to his underwear, and his dangling hand still holds a loaded pistol.

We keep tracking to find Daniels snoring in an armchair, inhaling dust through beams of light. A bottle of whiskey sits in his lap.

Daniels jerks awake and looks at the clock; it's 5:12PM. He grabs the whiskey and walks over to the bed. He slaps West on his back, and West groans.

ROBERT DANIELS:

Get up. Let's go eat. We gotta keep movin'.

JOHN WEST:

I'm not hungry.

ROBERT DANIELS:

Well what the fuck do you want to do then?

JOHN WEST:

I wanna see a movie.

ROBERT DANIELS:

No that's too many people.

West gets up and brushes past Daniels.

JOHN WEST:

It's dark in there, we'll be fine.

CUT TO:

INT. EVENING: MOVIE THEATER 96

Daniels and West sit in the middle of a sold out theater.

ROBERT DANIELS:
I gotta go take a shit.

JOHN WEST:
Bring back some popcorn will ya.

CUT TO:

INT. EVENING: MOVIE THEATER BATHROOM

97

Daniels exits a bathroom stall and washes his hands. He pauses, then looks at himself in the dirty mirror. His breathing turns heavy and he grips the sides of the sink. It's as though the weight of this journey has become too much to bear. He implodes inward and suddenly looks almost too weak to stand up.

Another man walks into the bathroom, brushing by Daniels. Daniels straightens up immediately, dries his hands, and walks out of the bathroom.

INT. EVENING: MOVIE THEATER HALLWAY

98

We follow him through the halls of the theater, into the showing of "The Red Shoes", and beside West as he takes his seat.

INT. EVENING: MOVIE THEATER

99

(Insert "The Red Shoes" ballet scene here)

Daniels looks around the theater, still anxious. West rests his head in his hands as he watches, thinking undoubtedly of Maria.

(More ballet scene)

The two stare at the screen with blank faces. The scene concludes, and the rest of the theater erupts with applause, but the two men remain sitting, stone-faced.

They are detached from everyone else, and reality begins to sink in: they'll never be able to rejoin society again.

ROBERT DANIELS:
Let's get outta here.

West nods.

CUT TO:

EXT. EVENING: STUART'S ROOT BEER STAND

100

Daniels leans on the front of the two-tone Pontiac in front of Stuart's Root Beer Stand. He eats a root beer float out of a styrofoam cup. West eats chocolate ice cream with sprinkles, sitting on the car next to Daniels.

A carhop girl on roller-skates rolls by.

CARHOP GIRL:
You fellas need anything?

ROBERT DANIELS:
Yeah, how bout a newspaper darlin'?

CARHOP GIRL:
You got it.

The two watch her legs as she blades off.

JOHN WEST:
I sure wish they had one of these joints back home.

ROBERT DANIELS:
If you wanna see some ass, go to a club.

JOHN WEST:
They don't have any sprinkles at the club.

Daniels scoffs, and the girl skates back to them with a newspaper in hand.

CARHOP GIRL:
Here you go, boys.

ROBERT DANIELS:
Thanks hon'.

He opens the paper, watching her as she skates off.

JOHN WEST:
(jokingly)
Did we make the front page?

Daniels starts to read.

JOHN WEST: (CONT'D)
Those fuckers will print anything.

Daniels' brow furrows, but West pays no attention.

ROBERT DANIELS:

Holy shit...

JOHN WEST:

Huh?

Daniels turns the paper to West, who puts his ice cream down to read it.

West opens to a full double-page article titled, "Mansfield Murderers Target of Manhunt, Biggest Since Dillinger". The subtext reads, "Linked Ambrose Slayers in Killing of Reformatory Warden and Family". Pictures of all three of the Niebel's are in the first page, and mugshots of Daniels and West are in the next.

The camera zooms in on some text in the top right of the screen.

Mrs. Snyder gave a fair description of the automobile. It tallied closely with the description given after the murder of Ambrose in Mansfield of the getaway car: a two-tone gray Pontiac sedan of late model.

Daniels walks to the newspaper stand and throws all the newspapers into a garbage can. He sees an old man reading the paper. They lock eyes for a brief, suspicious moment. Daniels heads back to the car.

JOHN WEST:

We need to get the fuck outta here.

Daniels ignores West and gets in the drivers seat of the car. West follows and gets in the passenger seat.

INT. EVENING: CAR

101

JOHN WEST: (CONT'D)

(pushing)

What are we doin'?

ROBERT DANIELS:

You don't get it, Johnny. They got our car. Doesn't matter how many plates we switch, they're gonna be looking for our car. We gotta get a new one.

JOHN WEST:

Here?

ROBERT DANIELS:
Where else are we going? We can't
leave our ride here, they'll be able
to track it.

JOHN WEST:
Ok. Ok. So what car are we getting?
All of these are full.

ROBERT DANIELS:
None of these are empty?

They scan the cars in the lot, each filled with happy couples
and families eating ice cream.

JOHN WEST:
So what do we do?

ROBERT DANIELS:
(pointing)
That one.

Daniels points to a Buick pulling out of the lot.

JOHN WEST:
The Buick?

Daniels eyes the Buick as it leaves the lot.

JOHN WEST: (CONT'D)
But it's leaving.

ROBERT DANIELS:
Good, we can't stay here anyways.

JOHN WEST:
Alright, drive.

Daniels starts the engine and pursues the Buick. We see
overhead shots of the Pontiac following the Buick out into
the road, and we...

CUT TO:

EXT. SUNSET: BACK ROAD

102

The Buick turns to a small, empty road off the highway;
Daniels and West follow.

JOHN WEST:
Fucking finally.

They both stick their pistols in their jackets.

ROBERT DANIELS:
Alright. Here we go.

JOHN WEST:
Wait, what are we -

Daniels speeds up in front of the Buick and brakes hard, forcing it to pull off the road.

They get out of the car and head back to the Buick. They approach on either side of the car. The couple inside, Mr. and Mrs. Smith, roll down their windows.

JIM SMITH:
What's going on here? Are you police?

Daniels and West exchange a split-second look, deciding (as always) to just roll with it.

ROBERT DANIELS:
Yes sir, I'm officer Harris.
(leans into the window)
Weren't you driving pretty fast?

JIM SMITH:
I'm pretty sure I was going the speed limit, officer.

JOHN WEST:
(interjecting)
Sir, I'm gonna need see your license.

JIM SMITH:
Who are you?

JOHN WEST:
Deputy Chief Johnson. Now let's see that license.

Jim and Rita Smith exchange a look of confusion. Daniels shakes his head at West's police gimmick.

Jim pulls out his license and displays it to West. West goes to grab it, but Jim holds on.

JOHN WEST: (CONT'D)
What are you doing?

JIM SMITH:
You can't have that.

JOHN WEST:
Sorry?

Jim yanks his ID away.

JIM SMITH:
You two aren't police.

West reaches into his coat pocket and shoots Jim Smith in the left temple, killing him instantly. Blood splatters West's coat and douses a screaming Rita Smith. Daniels steps back.

RITA SMITH:
Jim! Oh my God! Jim!

ROBERT DANIELS:
That was a nasty, dirty thing.

JOHN WEST:
I'm gonna go load the shit from the trunk. Can you keep an eye on her?

ROBERT DANIELS:
Johnny? Wha-

JOHN WEST:
(stern)
Would you please just fucking watch her?

Daniels stares at the blood on West's coat. West walks calmly back to the Pontiac, leaving Daniels with Rita Smith.

Daniels puts his gun back into his coat.

ROBERT DANIELS:
(looking at scene)
Fuck...
(to Rita)
Alright. Just - quit crying and get out of the car.

Rita says nothing in rebuttal, and just continues to sob.

ROBERT DANIELS: (CONT'D)
(to himself)
Shit.

Daniels rips the passenger side door open and tries to pull Rita out.

RITA SMITH:
(struggling)
Get your fucking hands off of me!
Don't fucking touch me!

As they struggle, a blue pickup truck drives by. We see their struggle through the passing truck's window: a dead man in the driver's seat and a bloody woman wrestling with a man outside the passenger's side.

The truck screeches to a halt. Rita Smith throws an elbow and hits Daniels in the eye.

ROBERT DANIELS:
Agh!

He lets go of her and she sprints to the stranger's truck.

CUT TO:

West sees Rita's escape.

JOHN WEST:
Shit.

West grabs everything that he can from the trunk and sprints back to the Buick - dropping guns, liquor, and ammo.

CUT TO:

Daniels comes to his senses and draws his pistol. He holds his finger on the trigger, but doesn't have the nerve to shoot. He's lost the edge.

Rita climbs into the truck; it speeds off.

West gets back with the guns and tosses them through the window of the Buick into the backseat.

JOHN WEST: (CONT'D)
(at Daniels)
What the fuck are you doing?

West grabs Jim's lifeless body and tosses it off the road into a ditch. He gets in the bloody driver's seat of the car, and Daniels slides into the passenger's seat.

West hits the gas and they speed off in the other direction.

The camera pans down, revealing the scattering of guns, ammo, and liquor on the road - the most prominent item being Daniels' German Mauser.

INT. SUNSET: STOLEN BUICK

103

The Buick's engine beats steadily through the night. An anger burns quietly; the two are desperate for any reason to break the silence.

West inhales sharply, finally.

JOHN WEST:
Why didn't you shoot her?

Daniels, now with a black eye, turns his head away and smacks his lips.

JOHN WEST: (CONT'D)
(riling himself up)
This whole thing has gotten us
nowhere. Now they know *this* car and
the plate. All because you wouldn't
pull the trigger.
(beat)
I had to kill that fucking guy for
nothing.

Daniels snaps back around.

ROBERT DANIELS:
No you didn't! You didn't have to kill
that fucking guy! It's like... It's
like you just can't help yourself.

West pauses for a moment, perhaps recognizing the truth of that statement.

JOHN WEST:
You're the one who gunned down a whole
family, Robert. Not me.

A long pause follows, and now Daniels finds some new truths. He pulls a pack of cigarettes out of his pocket, and feels around the rest of his pockets.

ROBERT DANIELS:
You got a light?

West doesn't respond.

ROBERT DANIELS: (CONT'D)
 (annoyed)
 Christ.

Daniels turns to the backseat, and rummages through the guns and the liquor. He pauses for a moment and sets his cigarette down, then redoubles his effort in shuffling things around.

He turns back to West.

ROBERT DANIELS: (CONT'D)
 Where the fuck is my Mauser?

JOHN WEST:
 What?

ROBERT DANIELS:
 You know what I'm talking about.

West shrugs his shoulders.

ROBERT DANIELS: (CONT'D)
 My Mauser. The one I bought back in
 Mansfield. It's not back here.

West grabs the rearview mirror and tilts it down to look in the backseat. He doesn't see the gun and tilts the mirror back up. West gives Daniels a small facial expression of defeat, pulling a box of matches out of his pocket and handing them to Daniels.

Daniels pauses, looking at the matches, then accepts the peace offering. He takes the matches and lights the cigarette.

Daniels smokes the cigarette and they sit in silence. He watches the pink summer sky sink into dark night.

ROBERT DANIELS: (CONT'D)
 We gotta get another fuckin' car.

CUT TO:

EXT. NIGHT: IRONSIDE INN

104

Around 11pm: Daniels and West roll into the Ironside Inn: a rest area.

Daniels gets out of the car and leans into the passenger window.

ROBERT DANIELS:
I'm gonna go take a piss. You need
anything?

West shakes his head no.

ROBERT DANIELS: (CONT'D)
You alright?

West rocks his head back and forth, building up the energy
for a response.

JOHN WEST:
Yeah.

West is a bad liar, but Daniels decides to let him be.

ROBERT DANIELS:
(tapping inside the door)
You uh - You might wanna get a new
jacket.

Daniels leaves him with this and heads into the Inn. West
looks down at his coat, perhaps noticing the blood for the
first time.

West sits in silence for a moment. He looks around the lot,
observing each parked vehicle. A group of men have drinks
around a fire in the back of the lot near parked semi-trucks.
His eyes stop at a lonely Studebaker hauler with it's lights
off.

West looks at the hauler like he's already decided that he's
going to take it. Now, he's just figuring out how.

He turns to the backseat, grabs a pistol, and gets out of the
car. He slides the pistol into his bloodied coat and beelines
to the truck. He gets there quickly and yanks on the driver's
side door handle.

It's locked, and to his surprise, the driver is sleeping in
the front cab. He's lied out with his feet facing the
driver's side door.

The driver wakes up, and the two lock eyes.

ORVILLE TAYLOR:
What you want?

West signals him to roll down the window. Orville gets
himself situated and opens the door.

ORVILLE TAYLOR: (CONT'D)
The hell you wake me for?

JOHN WEST:
Sorry. I couldn't help but notice that
you've gotta flat.

ORVILLE TAYLOR:
Shit. That's the second one this week.

Orville throws on his jacket and gets out of the cab.

ORVILLE TAYLOR: (CONT'D)
Which one is it?

JOHN WEST:
It's right back here.

West brings him to the back tire, so the truck itself is in-between them and the inn. Behind them there's nothing but tall grass and darkness.

ORVILLE TAYLOR:
(pointing to a wheel)
This one?

JOHN WEST:
Yessir.

Orville crouches down and flicks on a flashlight to examine the tire.

ORVILLE TAYLOR:
Let's see here.

He holds the flashlight in his mouth as he inspects the tire. He feels it out for a few seconds and then takes the flashlight out of his mouth.

ORVILLE TAYLOR: (CONT'D)
Looks fine to me.

Orville turns back to West.

West holds his pistol directly in Orville's face. The flashlight reflects off West's cracked glasses to mask his eyes.

CUT TO:

Daniels stands in the lobby of the inn. He flinches at the

pop of a gunshot. Outside, the truckers drinking beers by the fire look to where the shot was coming from: the Studebaker hauler. Daniels sees their Buick and notices that West isn't in it, quickly putting the pieces together.

Daniels walks out of the rest stop towards the hauler.

CUT TO:

West wears Orville's jacket and drags him into the thick tall grass.

CUT TO:

Daniels arrives at the car-hauler and cautiously makes his way to the other side of it. His eyes follow the trail of blood leading into the field and, when the trail disappears into the grass, West emerges.

JOHN WEST:

Hey. Help me get the guns.

ROBERT DANIELS:

The fuck happened?

West is already walking back to the Buick.

JOHN WEST:

Don't worry about it.

(pats him on the back)

Come on, let's go.

Though confused, Daniels obliges, following West out from behind the truck and into the better-lit parking area. The truckers eye them down.

West and Daniels quickly grab the guns from the backseat. They put the pistols in their pockets and keep the rifles and shotguns in their hands.

TRUCKER #1: (O.S.)

What the hell are y'all doin' over there?

West and Daniels walk back to the truck, and the truckers continue to shout from behind them.

TRUCKER #2:

What'd you do to Orville's truck?

TRUCKER #3:
Hey, we're talking to you two!

The two pick up their pace.

TRUCKER #1:
Hey, stop!

They finally get back to the truck, West scrambling into the driver's seat and Daniels getting into the passenger side.

ROBERT DANIELS:
Let's get the fuck outta here.

West looks around the dashboard and pats himself down.

JOHN WEST:
Shit. The keys.

ROBERT DANIELS:
You're kidding me.

West looks at the middle console, then checks the outside pockets of the coat, then unzips the coat to check the interior pockets. He finds the key and starts the hauler.

The truckers walk to the hauler, some armed. They hurl insults, slurs and beer bottles as Daniels and West drive away.

INT. NIGHT: THE RANCH

105

The two sit at a booth in "The Ranch", a burger joint - West chows down on a burger and fries, and Daniels stares at him, sipping a beer.

ROBERT DANIELS:
What are we doing here Johnny?

JOHN WEST:
(through bites)
I'm hungry. What? Are you not hungry?

ROBERT DANIELS:
I just don't understand how the fuck
you're eating right now, after all
that.

West shrugs and keeps mauling his meal.

ROBERT DANIELS:

We shouldn't just be sitting around here, eating. Those truckers saw us, you know. They probably know the plates on that hauler too.

JOHN WEST:

Robert, you know how many of those things are on the road every day? We'll be fine.

ROBERT DANIELS:

You don't get it Johnny. They're gonna start setting up roadblocks. We'll be lucky to even get out of the state.

JOHN WEST:

(ignoring)

I was thinking. It might look better if only one of us was up front.

ROBERT DANIELS:

(annoyed)

Alright, well, where would the other one go?

West points upwards and finishes another bite.

JOHN WEST:

We got four cars in the back. Take your pick.

ROBERT DANIELS:

Take *my* pick?

JOHN WEST:

I'm driving. I'm the one that got the damn thing. We'll split the guns 50/50.

There's a pause: Daniels sips his beer contemplatively and West chews thoughtlessly.

ROBERT DANIELS:

Say we do make it out of the state? Where would we go?

JOHN WEST:

I dunno, where do you wanna go?

ROBERT DANIELS:
We should probably go through Indiana,
then head out West.

JOHN WEST:
(jokingly)
Yeah, fuck it, head to California.

ROBERT DANIELS:
(playing along)
Yea... I've never seen the ocean.

JOHN WEST:
Neither have I.

They both laugh, but West laughs just a bit harder. Daniels examines West a moment.

ROBERT DANIELS: (CONT'D)
I know - I know I rode you pretty hard
about killing Ambrose and that fella
in the Buick. And I know I got no room
to talk, I mean you didn't say a word
after I... I just...

Daniels stares at the corner of the table, far away.

ROBERT DANIELS: (CONT'D)
Why'd you have to kill that truck
driver? You coulda at least waited for
me, we coulda worked something out.
That guy coulda had kids.
(beat)
Did you really have to kill him?

West looks up from his burger.

JOHN WEST:
I had to.

Daniels looks confused.

JOHN WEST:
We're even now.

West holds up three greasy fingers with each hand, signaling their kill count: 3-3.

CUT TO:

INT. DUSK: COURTROOM

106

Daniels looks out at the court as if he's reacting to the words for the first time. The gallery stares at him emptily; the spectacle of Robert Daniels is over, and Beam knows it. Silence lingers for a few uncomfortable seconds.

Lutz taps a pen on his desk.

THEODORE LUTZ:

Police records indicate that a few minutes after 11 a.m. on July 23rd, you two rolled into the intersection of State Route 687 and U. S. Route 224, six miles east of Van Wert. You were captured without resistance, however your partner John West opened fire on several officers, injuring Sergeant Leonard Conn and Frank A. Friemoth. Conn shot back and killed West instantly with a bullet right between his eyes.

Lutz walks around the bench and grabs a slip of paper.

THEODORE LUTZ: (CONT'D)

Your honor, I'd like to present to the court Exhibit H, a note from Mr. West found on his body after his death.

Daniels had no clue about this, and his expression drops for a moment.

The judges nod at Lutz, allowing him to read the note. Lutz puts his glasses on and raises the note to eye-level.

THEODORE LUTZ:

My name is John Coulter West. Hopefully I'm dead so this letter makes sense. I wish things were different. It all went too far.

For Maria, in this letter is 3,000 dollars for you, which is all I had, on account of your fancy dance lessons in New York. You made me forget who I was. In the end, I couldn't stand to look at you, it filled me with shame. I was far too weak a man for you.

(interrupting)

He erased and rewrote this line a

couple times.

(resuming)

I never stopped loving you, even after everything.

Robert, I hope you made it to the beach and I hope their Jack and Coke is better than mine. Don't blame yourself for what's happened. We lived strange lives. They'll never understand. You never left me, we never left each other. You're the best guy I ever knew.

(beat)

By the way, my gun never jammed back in that tavern. Still don't know why you didn't take the shot.

Daniels shakes his head and looks up at the windows.

Lutz takes his glasses off, folds them, and puts them in his breast pocket.

THEODORE LUTZ:

(to judges)

Robert Murl Daniels has forfeited all right to live because of the deliberate and premeditated murder of John, Nolana, and Phyllis Niebel. The state asks for a conviction. We have proved beyond any reasonable doubt this man's guilt of these heinous, bastardly and atrocious crimes. We ask he be given the supreme sentence and that a date be affixed for his electrocution.

(beat)

That'll be all your honor.

Daniels is on the verge of tears. It's all too much for him; it's time to give up. The ride is over.

A guard takes him off the stand, and Daniels sees Lutz walking by. Lutz smirks at him, allowing himself a brief moment of satisfaction in what seems like an eternity of defeat for Daniels. This is what keeps Lutz going; he'll find more cases just like Daniels. He's just a couple more pages in Lutz's record book.

The sound in the courtroom muffles. All Daniels can do is witness the end of the court date and, essentially, his own

story.

JUDGE G. E. KALBFLEISCH:
 (muffled)
 This court will adjourn until 9:30
 on...

The gallery all stands up, talking amongst themselves. A courtroom guard handcuffs Daniels, and he steps off the stand. Nobody looks at him or pays him anymore attention.

Beam walks up to the judges saying something that Daniels can't hear. Lutz meets Beam, and they shake hands. Lutz bends into the conversation, cracking a joke, and they all chuckle. It's just another day in the business.

SHERIFF SHAFFER:
 (speaking to reporter)
 I mean, I caught the bastard. You'd think out of everyone here that I'd have some pertinent evidence to provide the court...
 (fades out)

Reporters in the back compare their notes. Nobody photographs Daniels or asks him anything else. He steps off the stand, ears ringing, and makes his way to the holding room.

CUT TO:

INT. NIGHT: DANIELS' CELL

107

Daniels is alone again in his cell. He lies in his corner bed, away from the bars. His face is obscured by shadow, but his feet are illuminated by the full moon. Daniels stares out a window at the moon.

It brings back a certain memory...

CUT TO:

EXT. NIGHT: CORNFIELD

108

A full moon shines on West, who bangs on his jammed gun. Daniels looks at him with anger in his eyes.

Daniels pulls out his Mauser, cocks it, and raises it to the back of Mr. Niebel's head.

JOHN WEST:

Robert -

BANG.

John Niebel drops dead instantly, falling forward on his face. His wife and daughter - shivering, naked, fearful - cry out hopelessly but don't get off of their knees.

Daniels takes a step to the left, behind Phyllis, who flinches at the movement. She cries out for her mother, looking at her and raising up her arm as if to grab her hand.

BANG.

Phyllis drops dead, falling forward with her arm still reaching towards her mother. Nolana shrieks as her daughter hits the mud.

Daniels steps behind Nolana. She's a mess - panting wildly, ropes of snot coming from her red nose. Still, she wipes the tears from her eyes and closes them, readying herself for what's about to come. She takes a breath, but before she can finish:

BANG.

Her limp body squishes in the mud.

Daniels puts his Mauser back in his coat pocket, still angry with West. West looks at him, shocked. Daniels holds the angry gaze for a moment before walking back to the car. West follows.

JOHN WEST:

Robert... I -

ROBERT DANIELS:

Shut up. You fuckin idiot.

JOHN WEST:

You could've given me the gun, I woulda done it.

ROBERT DANIELS:

Bullshit.

JOHN WEST:

How would you know?

ROBERT DANIELS:
Doesn't fucking matter. It's done now.

They get back to the car, and both of them hop in.

JOHN WEST:
Shit, now you got more than me.

Daniels gives West a wry smile.

ROBERT DANIELS:
Yeah, you'd better catch up.

West's face says it all. Game on.

CUT TO:

INT. NIGHT: DANIELS' CELL

109

We see a close up of Daniels, smiling as he recalls this fond memory. He knows he'll burn, he knows he's alone, but at least he has the memory of a good friend.

He chuckles softly. He regrets nothing.

CUT TO:

We track through the dirty, hopeless hallway outside of his cell. Daniels' chuckles echo in the emptiness.

TEXT APPEARS ON SCREEN:

"Robert Daniels was put to death by the electric chair on January 3rd, 1949."

FADE TO BLACK, ROLL CREDITS